

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
JULIUS WALLACE,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT P.O. AMATO, "JOHN DOES", NEW
YORK CITY POLICE OFFICERS WHOSE IDENTITIES
ARE PRESENTLY UNKNOWN, NEW YORK CITY
TRANSIT AUTHORITY, SHAWN H. STRAKER, HERTZ
VEHICLES LLC., CHRISTOPHER LANGLEY, DAVID L.
KELLMAN and GEORGE S. JONES a/k/a DAVID L.
KELLMAN,

Defendants.
-----X

Index No.:

Date Purchased:

SUMMONS

Plaintiff designates Kings
County as the place of trial.

The basis of venue is:

Location of accident

Plaintiff resides at:

114 -69 145th Street

Jamaica, New York 11436

County of Queens

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty (20) days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within thirty (30) days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Great Neck, New York
September 4, 2014



JACK A. YANKOWITZ, ESQ.
THE YANKOWITZ LAW FIRM, P.C.

Attorneys for Plaintiff

JULIUS WALLACE

175 East Shore Road

Great Neck, New York 11023

(516) 622-6200

TO:

THE CITY OF NEW YORK

100 Church Street
New York, New York

NEW YORK CITY POLICE DEPARTMENT

P.O. AMATO AND "JOHN DOES"

1 Police Plaza
New York, New York 10013

NEW YORK CITY TRANSIT AUTHORITY

130 Livingston Street
Brooklyn, New York 11201

SHAWN H. STRAKER

236 Hancock Street, Apt. No.5
Brooklyn, New York 11216

HERTZ VEHICLES, LLC

44074 Mercure Circle
Sterling, VA 20166-2014

and/ or

111 Eighth Avenue
New York, New York 10011

GEORGE S. JONES aka DAVID L. KELLMAN

526 Herzl Street
Brooklyn, New York 11212

DAVID L. KELLMAN

1311 Prospect Place
Brooklyn, New York 11213

CHRISTOPHER LANGLEY

221 Park Place
Brooklyn, New York 11238

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
JULIUS WALLACE,

Plaintiff,

-against-

Index No.:

Date Purchased:

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT P.O. AMATO, "JOHN DOES", NEW YORK CITY POLICE OFFICERS WHOSE IDENTITIES ARE PRESENTLY UNKNOWN, NEW YORK CITY TRANSIT AUTHORITY, SHAWN H. STRAKER, HERTZ VEHICLES LLC., CHRISTOPHER LANGLEY, DAVID L. KELLMAN and GEORGE S. JONES a/k/a DAVID L. KELLMAN, **VERIFIED COMPLAINT**

Defendants.

-----X
Plaintiff, **JULIUS WALLACE**, by his attorneys, **THE YANKOWITZ LAW FIRM, P.C.**,
complaining of the Defendants, respectfully alleges, upon information and belief:

1. That at all times herein mentioned, Plaintiff, **JULIUS WALLACE**, was, and still is,
a resident of the County of Queens, State of New York.

2. That on September 9, 2013, and at all times herein mentioned, Defendant, **THE CITY OF NEW YORK**, was, and still is, a municipal corporation.

3. That on and before September 9, 2013, the Defendant, **NEW YORK CITY TRANSIT AUTHORITY**, was and still is a municipal authority and/or entity.

4. That on September 9, 2013, and at all times herein mentioned, Defendant, **NEW YORK CITY POLICE DEPARTMENT**, was, and still is, a department maintained, owned, operated and controlled by the Defendant **CITY OF NEW YORK**.

5. That prior hereto and on October 16, 2013, within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof, was duly served on the Plaintiff's behalf on the Defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT P.O. AMATO, "JOHN DOES", A NEW YORK CITY POLICE OFFICERS WHOSE NAME AND IDENTITY ARE PRESENTLY UNKNOWN, NEW YORK CITY TRANSIT AUTHORITY and SHAWN H. STRAKER**, and that, thereafter, said Defendants refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced. (A copy of the Notice of Claim is annexed hereto and incorporated herein by reference).

6. That on November 25, 2013, pursuant to General Municipal Law 50-h, a hearing was held at the Office of Jeffrey Samuel & Partners, the designated agent of the aforesaid Defendants.

7. That at all times hereinafter mentioned, Defendant, **P.O. AMATO, "JOHN DOES"**, were, and still are, a resident of the State of New York, and was at all times herein mentioned employed by the Defendants, **CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT**.

8. That at all times hereinafter mentioned, Defendant, **SHAWN H. STRAKER**, was, and still is, a resident of the County of Kings, State of New York.

9. That at all times herein mentioned, Defendant, **HERTZ VEHICLES, LLC.**, was and still is a foreign limited liability company duly organized and existing under and by virtue of the laws of the State of New York.

10. That at all times herein mentioned, Defendant, **HERTZ VEHICLES, LLC.**, maintained a principal place of business in the County of New York, State of New York.

11. That at all times hereinafter mentioned, Defendant, **GEORGE S. JONES a/k/a DAVID L. KELLMAN**, was, and still is, resident of the County of Kings, State of New York.

12. That on September 9, 2013 and at all times herein mentioned, Defendants, **CITY OF NEW YORK** and/or **NEW YORK CITY POLICE DEPARTMENT**, were the owner of one or more certain NYPD vehicles, New York State registration number is presently unknown, which was involved in a high speed chase and pursuit of a vehicle VA plate number WTZ3456, as described in the Notice of Claim annexed hereto.

13. That at all times herein mentioned, Defendant, **P.O. AMATO, "JOHN DOES"**, operated the aforementioned New York City Police Department Vehicle(s).

14. That at all times herein mentioned, Defendant, **P.O. AMATO, "JOHN DOES"**, operated the aforementioned New York City Police Department Vehicle(s) with the permission of Defendants, **CITY OF NEW YORK** and/or **NEW YORK CITY POLICE DEPARTMENT**.

15. That at all times herein mentioned, Defendant, **P.O. AMATO, "JOHN DOES"**, operated the aforementioned New York City Police Department Vehicle(s) with the knowledge of the Defendants, **CITY OF NEW YORK** and/or **NEW YORK CITY POLICE DEPARTMENT**.

16. That at all times herein mentioned, Defendant, **P.O. AMATO, “JOHN DOES”**, operated the aforementioned New York City Police Department Vehicle(s) with the consent of the Defendants, **CITY OF NEW YORK** and/or **NEW YORK CITY POLICE DEPARTMENT**.

17. That at all times herein mentioned, Defendant, **P.O. AMATO, “JOHN DOES”**, operated the aforementioned New York City Police Department Vehicle(s) within the scope of their employment with the Defendants, **CITY OF NEW YORK** and/or **NEW YORK CITY POLICE DEPARTMENT**.

18. That at all times herein mentioned, Defendants, **CITY OF NEW YORK** and/or **NEW YORK CITY POLICE DEPARTMENT**, their agents, servants, and/or employees managed the aforementioned New York City Police Department Vehicle(s).

19. That at all times herein mentioned, Defendant, **P.O. AMATO, “JOHN DOES”**, managed the aforementioned New York City Police Department Vehicle(s).

20. That at all times herein mentioned, Defendants, **CITY OF NEW YORK** and/or **NEW YORK CITY POLICE DEPARTMENT**, their agents, servants, and/or employees maintained the aforementioned New York City Police Department Vehicle(s).

21. That at all times herein mentioned, Defendant, **P.O. AMATO, “JOHN DOES”**, maintained the aforementioned New York City Police Department Vehicle(s).

22. That at all times herein mentioned, Defendants, **CITY OF NEW YORK** and/or **NEW YORK CITY POLICE DEPARTMENT**, their agents, servants and/or employees controlled the aforementioned New York City Police Department Vehicle(s).

23. That at all times herein mentioned, Defendant, **P.O. AMATO, “JOHN DOES”**, controlled the aforementioned New York City Police Department Vehicle(s).

24. That on September 9, 2013, the aforesaid high speed chase and pursuit by the aforesaid NYPD vehicle(s) was conducted in a careless, reckless and grossly negligent manner in high traffic and traveled area by cars, buses and pedestrians, causing, permitting and allowing said vehicle (VA plate number WTZ3456 operated by Defendant, **GEORGE S. JONES a/k/a DAVID L. KELLMAN**) to enter the intersection of Herkimer Street and Albany Avenue, County of Kings, City and State of New York, at a high and unsafe rate of speed and collide with New York City Transit Authority bus plate number L90912.

25. That at all times herein mentioned, Defendant, **NEW YORK CITY TRANSIT AUTHORITY** was the owner of a Bus bearing New York State registration number L90912.

26. That at all times herein mentioned, Defendant, **SHAWN H. STRAKER**, operated the aforementioned Bus bearing New York State registration number L90912.

27. That at all times herein mentioned, Defendant, **SHAWN H. STRAKER**, operated the aforementioned Bus with the permission of Defendant, **NEW YORK CITY TRANSIT AUTHORITY**.

28. That at all times herein mentioned, Defendant, **SHAWN H. STRAKER**, operated the aforementioned Bus with the knowledge of the Defendant, **NEW YORK CITY TRANSIT AUTHORITY**.

29. That at all times herein mentioned, Defendant, **SHAWN H. STRAKER**, operated the aforementioned Bus with the consent of the Defendant, **NEW YORK CITY TRANSIT AUTHORITY**.

30. That at all times herein mentioned, Defendant, **SHAWN H. STRAKER**, operated the aforementioned Bus within the scope of his employment with the Defendant, **NEW YORK CITY TRANSIT AUTHORITY**.

31. That at all times herein mentioned, Defendant, **NEW YORK CITY TRANSIT AUTHORITY**, their agents, servants, and/or employees managed the aforementioned Bus.

32. That at all times herein mentioned, Defendant, **SHAWN H. STRAKER**, managed the aforementioned Bus.

33. That at all times herein mentioned, Defendant, **NEW YORK CITY TRANSIT AUTHORITY**, their agents, servants, and/or employees maintained the aforementioned Bus.

34. That at all times herein mentioned, Defendant, **SHAWN H. STRAKER**, maintained the aforementioned Bus.

35. That at all times herein mentioned, Defendant, **NEW YORK CITY TRANSIT AUTHORITY**, their agents, servants and/or employees controlled the aforementioned bus.

36. That at all times herein mentioned, Defendant, **SHAWN H. STRAKER**, controlled the aforementioned Bus.

37. That at all times herein mentioned, Defendant, **HERTZ VEHICLES, LLC.**, was the owner of a the aforesaid motor vehicle bearing Virginia State registration number WTZ3456.

38. That on and/or before September 9, 2013, the Defendant, **CHRISTOPHER LANGLEY**, rented and/or leased the aforesaid vehicle bearing Virginia State plate number WTZ3456 from Defendant, **HERTZ VEHICLES LLC**.

39. That at all times herein mentioned, Defendant, **GEORGE S. JONES**, operated the aforementioned motor vehicle, Virginia State plate number WTZ3456.

40. That at all times herein mentioned, Defendant, **GEORGE S. JONES**, operated the aforementioned motor vehicle with the permission of Defendant, **HERTZ VEHICLES, LLC**.

41. That at all times herein mentioned, Defendant, **GEORGE S. JONES**, operated the aforementioned motor vehicle with the knowledge of the Defendant, **HERTZ VEHICLES, LLC**.

42. That at all times herein mentioned, Defendant, **GEORGE S. JONES**, operated the aforementioned motor vehicle with the consent of the Defendant, **HERTZ VEHICLES, LLC**.

43. That at all times herein mentioned, Defendant, **GEORGE S. JONES**, operated the aforementioned motor vehicle with the permission of Defendant, **CHRISTOPHER LANGLEY**.

44. That at all times herein mentioned, Defendant, **GEORGE S. JONES**, operated the aforementioned motor vehicle with the knowledge of the Defendant, **CHRISTOPHER LANGLEY**.

45. That at all times herein mentioned, Defendant, **GEORGE S. JONES**, operated the aforementioned motor vehicle with the consent of the Defendant, **CHRISTOPHER LANGLEY**.

46. That at all times herein mentioned, Defendant, **DAVID L. KELLMAN**, operated the aforementioned motor vehicle, Virginia State plate number WTZ3456.

47. That at all times herein mentioned, Defendant, **DAVID L. KELLMAN**, operated the aforementioned motor vehicle with the permission of Defendant, **HERTZ VEHICLES, LLC**.

48. That at all times herein mentioned, Defendant, **DAVID L. KELLMAN**, operated the aforementioned motor vehicle with the knowledge of the Defendant, **HERTZ VEHICLES, LLC**.

49. That at all times herein mentioned, Defendant, **DAVID L. KELLMAN**, operated the aforementioned motor vehicle with the consent of the Defendant, **HERTZ VEHICLES, LLC**.

50. That at all times herein mentioned, Defendant, **DAVID L. KELLMAN**, operated the aforementioned motor vehicle with the permission of Defendant, **CHRISTOPHER LANGLEY**.

51. That at all times herein mentioned, Defendant, **DAVID L. KELLMAN**, operated the aforementioned Chevrolet motor vehicle with the knowledge of the Defendant, **CHRISTOPHER LANGLEY**.

52. That at all times herein mentioned, Defendant, **DAVID L. KELLMAN**, operated the aforementioned motor vehicle with the consent of the Defendant, **CHRISTOPHER LANGLEY**.

53. That at all times herein mentioned, Defendant, **HERTZ VEHICLES, LLC**, their agents, servants, and/or employees managed the aforementioned motor vehicle.

54. That at all times herein mentioned, Defendants, **GEORGE S. JONES**, and/or **DAVID L. KELLMAN** and/or **CHRISTOPHER LANGLEY** managed the aforementioned Chevrolet motor vehicle.

55. That at all times herein mentioned, Defendant, **HERTZ VEHICLES, LLC**, their agents, servants, and/or employees maintained the aforementioned motor vehicle.

56. That at all times herein mentioned, Defendants, **GEORGE S. JONES**, and/or **DAVID L. KELLMAN** and/or **CHRISTOPHER LANGLEY**, maintained the aforementioned motor vehicle.

57. That at all times herein mentioned, Defendant, **HERTZ VEHICLES, LLC**, their agents, servants and/or employees controlled the aforementioned motor vehicle.

58. That at all times herein mentioned, Defendants, **GEORGE S. JONES**, and/or **DAVID L. KELLMAN** and/or **CHRISTOPHER LANGLEY**, controlled the aforementioned motor vehicle.

59. That on September 9, 2013, and at all times herein mentioned, The Defendant, **P.O. AMATO, "JOHN DOES"**, operated the Defendants, **CITY OF NEW YORK and NEW YORK**

CITY POLICE DEPARTMENT, aforesaid New York City Police Department Vehicle(s) at and/or near the intersection of Herkimer Street and Albany Avenue, Brooklyn, New York.

60. That on September 9, 2013 and at all times herein mentioned, Defendant, **GEORGE S. JONES**, operated the Defendant, **HERTZ VEHICLES, LLC's** aforesaid motor vehicle at and/or near the intersection of Herkimer Street and Albany Avenue, Brooklyn, New York.

61. That on September 9, 2013 and at all times herein mentioned, Defendant, **DAVID L. KELLMAN**, operated the Defendant, **HERTZ VEHICLES, LLC's** aforesaid motor vehicle at and/or near the intersection of Herkimer Street and Albany Avenue, Brooklyn, New York.

62. That on September 9, 2013, and at all times herein mentioned, Defendant, **SHAWN H. STRAKER**, operated the Defendant, **NEW YORK CITY TRANSIT AUTHORITY's**, aforesaid Bus at and/or near the intersection of Herkimer Street and Albany Avenue, Brooklyn, New York.

63. That on September 9, 2013, Plaintiff, **JULIUS WALLACE**, was a passenger in aforementioned New York City Transit Authority Bus bearing New York registration number L90912.

64. That at all times herein mentioned, the intersection of Herkimer Street and Albany Avenue, County of Kings and State of New York, were public roadways, streets and/or thoroughfares.

65. That on September 9, 2013 the aforesaid motor vehicle owned by Defendant, **HERTZ VEHICLES, LLC.**, and operated by Defendants, **GEORGE S. JONES**, and/or **DAVID L. KELLMAN**, was involved in a high-speed chase by a NYC Police Department vehicle, or vehicles,

operated and/ or occupied by Defendant, **P.O. AMATO, and “JOHN DOES”**, causing, permitting, allowing and resulting in a collision between said motor vehicle operated by Defendant, **GEORGE S. JONES, and/or DAVID L. KELLMAN** with the aforesaid Bus operated by Defendant, **SHAWN H. STRAKER**, and owned by Defendant, **NEW YORK CITY TRANSIT AUTHORITY**, while the Plaintiff, **JULIUS WALLACE**, was a passenger on the aforementioned location.

66. That as a result of the aforesaid contact, Plaintiff, **JULIUS WALLACE**, was seriously injured.

67. That the aforesaid occurrence was caused wholly and solely by reason of the negligence of the Defendants, their agents, servants and/or employees without any fault or negligence on the part of the Plaintiff contributing thereto.

68. That Defendants, their agents, servants and/or employees were grossly negligent, careless and reckless in the ownership, operation, management, maintenance, supervision, use and control of their aforesaid vehicles; in operating said motor vehicles in a manner which unreasonably endangered the public and the plaintiff in particular; and in failing to properly steer, guide, manage and control their aforesaid vehicles; in failing to avoid the aforesaid collision although they had an opportunity to avoid same; in operating their aforesaid vehicles at an excessive and unsafe speed under the prevailing roadway and traffic conditions; in failing to be attentive to the prevailing traffic and roadway conditions; in failing to keep a proper lookout; in failing to properly brake and steer their vehicles; in failing to stop; in failing to operate their vehicles in a manner to avoid and prevent the aforesaid collision; in causing, permitting and allowing a reckless, unsafe, hazardous and dangerous high speed chase and pursuit under the prevailing roadway and traffic conditions, causing

the aforesaid collision and severe injuries to more than 40 people, including the claimant herein; in violating the traffic and vehicle laws of the City and State of New York, the NYC Police Department rules, regulations and procedures; in being otherwise careless, reckless and negligent in causing the aforesaid collision and the injuries to the claimant herein.

69. That by reason of the foregoing, Plaintiff, **JULIUS WALLACE**, sustained severe and permanent personal injuries; and Plaintiff, **JULIUS WALLACE**, was otherwise damaged.

70. That Plaintiff, **JULIUS WALLACE**, sustained serious injuries as defined by §5102(d) of the Insurance Law of the State of New York.

71. That Plaintiff, **JULIUS WALLACE**, sustained serious injury and economic loss greater than basic economic loss as defined by §5104 of the Insurance Law of the State of New York.

72. That by reason of the foregoing and the negligence of the said defendants, this Plaintiff, **JULIUS WALLACE**, sustained serious, severe, and permanent injuries to his head, limbs and body, still suffers and will continue to suffer for some time, great physical and mental pain and serious bodily injury; became sick, sore, lame and disabled and so remained for a considerable length of time.

73. That by reason of the wrongful, negligent and unlawful actions of the Defendants, as aforesaid, the Plaintiff, **JULIUS WALLACE**, sustained serious injuries as defined in the Insurance Law of the State of New York, and has sustained economic loss greater than basic economic loss as defined in said Insurance Law.

74. That by reason of the foregoing and the negligence of the said Defendants, this Plaintiff, **JULIUS WALLACE**, is informed and verily believes his aforesaid injuries are permanent and he will permanently suffer from the effects of his aforesaid injuries and he will be caused to

suffer permanent embarrassment and continuous pain and inconvenience.

75. That by reason of the foregoing, the Plaintiff, **JULIUS WALLACE**, has been unable to attend to his usual occupation and avocation in the manner required.

76. That by reason of the culpable conduct and wrongful, negligent and unlawful actions of the Defendants, as aforesaid, the Plaintiff, **JULIUS WALLACE**, was severely injured, bruised and wounded, suffered, still suffers, and will continue to suffer for some time great physical pain and great bodily injuries and became sick, sore, lame and disabled and so remained for a considerable length of time.

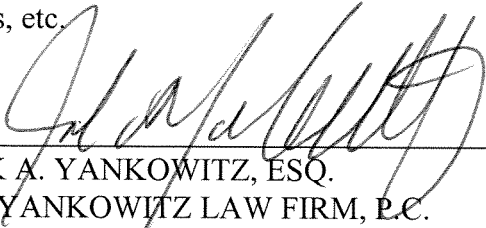
77. That this action falls within one or more of the exceptions set forth in CPLR §1602.

78. That by reason of the foregoing, Plaintiff, **JULIUS WALLACE**, has been damaged in a sum that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff demands judgment against the Defendants herein, in a sum exceeding the jurisdictional limits of all lower courts that would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: Great Neck, New York
September 4, 2014

Yours, etc.



JACK A. YANKOWITZ, ESQ.
THE YANKOWITZ LAW FIRM, P.C.
Attorneys for Plaintiff
JULIUS WALLACE
175 East Shore Road
Great Neck, New York 11023
(516) 622-6200
Our File No. 7648 -13

NOTICE OF CLAIM

-----X
In the Matter of the Claim of

JULIUS WALLACE

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT
P.O. AMATO, "JOHN DOE", A NEW YORK CITY POLICE OFFICER WHOSE NAME
AND IDENTITY IS PRESENTLY UNKNOWN
NEW YORK CITY TRANSIT AUTHORITY
and SHAWN H. STRAKER
-----X

To: Comptroller of the City of New York
Municipal Building •
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
P.O. AMATO and "JOHN DOE"
1 Police Plaza
New York, NY 10013

NYCTA, 370 Jay Street, Brooklyn, New York 11201
130 Livingston St., Brooklyn, New York

Shawn H. Straker
236 Hancock St. – Apt. 5
Brooklyn, NY 11216

1. The name and address of the claimant and claimant's attorney:

Claimant

Julius Wallace
114 -69 145th Street
Jamaica, NY 11436
(347) 238-9809

Attorney

THE YANKOWITZ LAW FIRM, P.C.
175 East Shore Road
(516) 622-6200

2. The nature of the claim:

To recover money damages for personal injuries, pain and suffering, medical expenses and related damages incurred by and on behalf of claimant JULIUS WALLACE by reason of the negligence, recklessness and carelessness of THE CITY OF NEW YORK, NYC POLICE

2013 OCT 16 PM 12:54

DEPARTMENT, P.O. AMATO, "JOHN DOE", NYCTA AND SHAWN H. STRAKER, their agents, servants, employees and/or licensees in causing, permitting and/or allowing a collision between NYCTA bus NYS plate number L90912 and a motor vehicle bearing VA plate number WTZ3456.

3. The time when, the place where and the manner in which the claim arose:

Upon information and belief, at approximately 4:38 p.m. on September 9, 2013 while claimant JULIUS WALLACE was lawfully a passenger in a NYCTA bus, NYS plate # L90912 being operated by SHAWN H. STRAKER at the intersection of E/B Herkimer Street and Albany Avenue, County of Kings, City and State of New York, claimant was seriously injured when said NYCTA bus came into collision with a motor vehicle bearing VA plate number WTZ3456 operated by George S. Jones (a copy of the NYC Police Accident Report is annexed hereto and incorporated by reference).

That, upon information and belief, at the aforesaid time, date and place, a NYC Police Department vehicle, operated and/or occupied by NYC P.O. AMATO and/or "JOHN DOE" (name being fictitious, the true identity being presently unknown) engaged in a high-speed chase and pursuit of the aforesaid vehicle VA plate number WTZ3456 operated by George S. Jones, causing, permitting and allowing said motor vehicle (VA plate # WTZ3456 operated by George S. Jones), to travel at a high rate of speed in a high traffic and traveled area and enter the aforesaid intersection and collide with the aforesaid NYCTA bus; that the claimant was seriously injured by reason of the negligence, recklessness and carelessness of CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O. AMATO AND "JOHN DOE" a NEW YORK CITY POLICE OFFICER WHOSE NAME AND IDENTITY IS PRESENTLY UNKNOWN, NEW YORK CITY TRANSIT AUTHORITY and SHAWN H. STRAKER, their agents, servants employees and/or licensees in the ownership, operation, control and maintenance of their aforesaid motor vehicles; in operating said motor vehicles in a manner which unreasonably endangered the public and the plaintiff in particular; and in failing to properly steer, guide, manage and control their aforesaid vehicles; in failing to avoid the aforesaid collision although they had an opportunity to avoid same; in operating their aforesaid vehicles at an excessive and unsafe speed under the prevailing roadway and traffic conditions; in failing to be attentive to the prevailing traffic and roadway conditions; in failing to keep a proper lookout; in failing to properly brake and steer their vehicles; in failing to stop; in failing to operate their vehicles in a manner to avoid and prevent the aforesaid collision; in causing, permitting and allowing a reckless, unsafe, hazardous and dangerous high speed chase and pursuit under the prevailing roadway and traffic conditions, causing the aforesaid collision and severe injuries to more than 40 people, including the claimant herein; in violating the traffic and vehicle laws of the City and State of New York, the NYC Police Department rules, regulations and procedures; in being otherwise careless, reckless and negligent in causing the aforesaid collision and the injuries to the claimant herein.

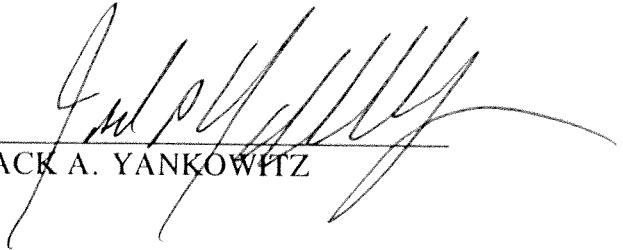
4. Claimant JULIUS WALLACE sustained severe permanent personal injuries, the full extent of which is not presently known, including but not limited to, upon information and belief, injuries to his head/brain; cervical spine herniations; back injury and damage and multiple other bodily injuries. Claim is for personal injuries, hospital, physician and other medical expenses, pain and

suffering, loss of quality and/or enjoyment of life, and all other damages to which claimant is entitled to by case law and statute.

Claimant JULIUS WALLACE has suffered damages in an amount in excess of TEN MILLION (\$10,000,000.00) DOLLARS.

5. The claimant, JULIUS WALLACE therefore presents this claim for adjustment and payment. you are hereby notified that unless said claim is adjusted and paid within the time provided by law from the date of presentation to you, the claimant intends to commence an action on this claim.

Dated: Great Neck, New York
October 10, 2013


JACK A. YANKOWITZ


THE YANKOWITZ LAW FIRM, P.C.
Attorneys for Claimant(s)
175 East Shore Road
Great Neck, New York 11023
(516) 829-4300

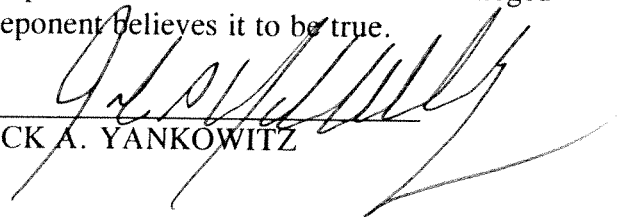
VERIFICATION

STATE OF NEW YORK

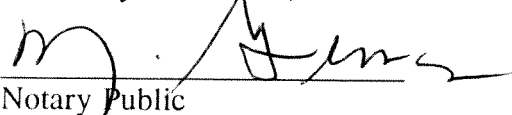
SS.:

COUNTY OF NASSAU }

JACK A. YANKOWITZ, being duly sworn, deposes and says that deponent is the attorney for the above named claimant; deponent has read the foregoing NOTICE OF CLAIM and know its contents; the same is true to deponent's knowledge, except as to those matters stated to be alleged upon information and belief, and as to those matters deponent believes it to be true.


JACK A. YANKOWITZ

Sworn to before me this
10TH day of October, 2013.


Notary Public

MARIELA GERMAN
NOTARY PUBLIC, STATE OF NEW YORK
NO. 01066116248
QUALIFIED IN NASSAU COUNTY
TERM EXPIRES SEPTEMBER 20, 20 14

41 hurt in high-speed chase

By Dana Sauchelli and Kenneth Garger

September 9, 2013 | 8:04pm

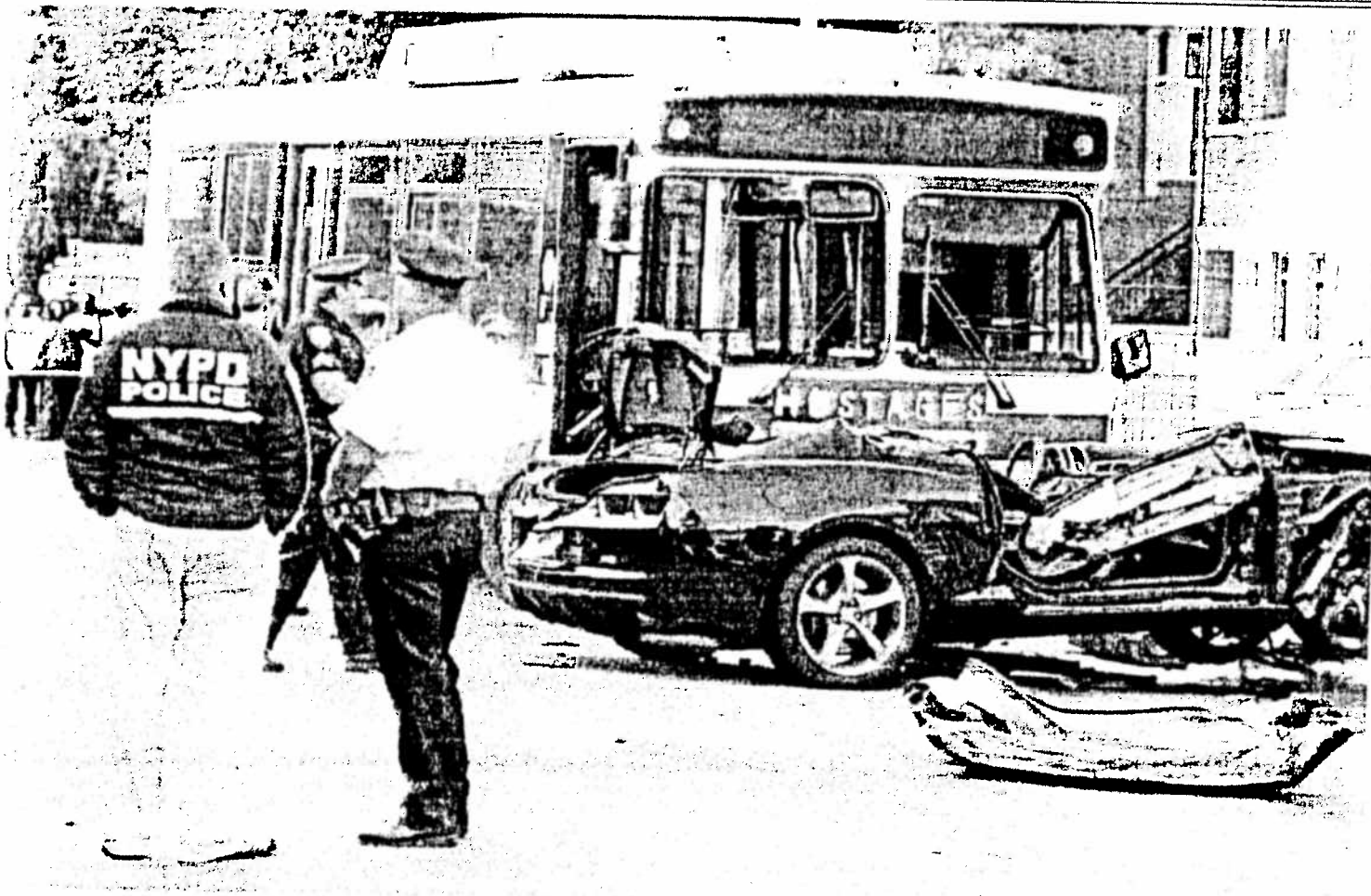


Photo: William Miller

More than 40 people were injured during a rush-hour smash-up between a city bus and a car trying to speed away from cops in Brooklyn on Monday, authorities said.

Officials said 41 people on the B15 bus were hurt as their vehicle crashed into a black Camaro after the car ran a stop sign at Herkimer Street and Albany Avenue in Bedford-Stuyvesant.

POLICE ACCIDENT REPORT (NYC)

MV-104AN (7/11)

Precinct	81
Accident No.	755

Complaint Number 5628

☐ AMENDED REPORT

Accident Date Month: Sep, Day: 9, Year: 2013			Day of Week Monday		Military Time 1638		No. of Vehicles 2		No. Injured 43		No. Killed 0		Not Investigated at Scene ☐		Left Scene ☐		Police Photos ☒ Yes ☐ No		
VEHICLE 1										☒ VEHICLE 2 ☐ BICYCLIST ☐ PEDESTRIAN ☐ OTHER PEDESTRIAN									
VEHICLE 1 - Driver License ID Number 193011123 State of Lic. NY										VEHICLE 2 - Driver License ID Number 631287225 State of Lic. NY									
Driver Name - exactly as printed on license JONES,GEORGE,S										Driver Name - exactly as printed on license STRAKER,SHAWN,H									
Address (include Number & Street) 526 HERZL ST Apt. No.										Address (include Number & Street) 236 HANCOCK ST Apt. No. 5									
City or Town BROOKLYN State NY Zip Code 11212										City or Town BROOKLYN State NY Zip Code 11216									
Date of Birth Month: Dec, Day: 28, Year: 85 Sex: M Unlicensed ☐ No. of Occupants 2 Public Property Damaged ☐										Date of Birth Month: Jun, Day: 29, Year: 75 Sex: M Unlicensed ☐ No. of Occupants 39 Public Property Damaged ☐									
Name-exactly as printed on registration HERTZ VEHICLES LLC Sex Date of Birth Month: Day: Year:										Name-exactly as printed on registration NEW YORK CITY TRANSIT AUTHORITY Sex Date of Birth Month: Day: Year:									
Address (include Number & Street) 44074 MERCURE CIR Apt. No. Haz. Mat. Code Released ☐										Address (include Number & Street) 25 JAMAICA AVE Apt. No. Haz. Mat. Code Released ☐									
City or Town STERLING State VA Zip Code 201662014										City or Town BROOKLYN State NY Zip Code 11207									
Plate Number WTZ3456 State of Reg. VA Vehicle Year & Make CHEV-2013 Vehicle Type 2DSD Ins. Code										Plate Number L90912 State of Reg. NY Vehicle Year & Make 2005-ORION Vehicle Type BUS Ins. Code 994									
Ticket/Arrest Number(s)										Ticket/Arrest Number(s)									
Violation Section(s)										Violation Section(s)									
Check if involved vehicle is: ☐ more than 95 inches wide; ☐ more than 34 feet long; ☐ operated with an overweight permit; ☐ operated with an overdimension permit.										Check if involved vehicle is: ☐ more than 95 inches wide; ☐ more than 34 feet long; ☐ operated with an overweight permit; ☐ operated with an overdimension permit.									
VEHICLE 1 DAMAGE CODES Box 1 - Point of Impact 11 Box 2 - Most Damage 11 Enter up to three more Damage Codes 3 2 12										VEHICLE 2 DAMAGE CODES Box 1 - Point of Impact 2 Box 2 - Most Damage 3 Enter up to three more Damage Codes 3 4 5									
Vehicle By Towed to										Vehicle By Towed To									
VEHICLE DAMAGE CODING: 1-13 SEE DIAGRAM ON RIGHT. 14. UNDERCARRIAGE 17. DEMOLISHED 15. TRAILER 18. NO DAMAGE 16. OVERTURNED 19. OTHER										Circle the diagram below that describes the accident, or draw your own diagram in space #9. Number the vehicles. Rear End 1, Left Turn 3, Right Angle 4, Right Turn 5, Head On 7, Overtaking 2, Left Turn 6, Right Turn 8, Sideswipe 9. ACCIDENT DIAGRAM: Cost of repairs to any one vehicle will be more than \$1,000. ☐ Unknown/Unable to Determine ☐ Yes ☐ No									
Reference Marker										Coordinates (if available) Latitude/Northing: Longitude/Easting:									
Place Where Accident Occurred: ☐ BRONX ☒ KINGS ☐ NEW YORK ☐ QUEENS ☐ RICHMOND										Road on which accident occurred E/B HERKIMER STREET (Route Number or Street Name)									
at 1) intersecting street ALBANY AVENUE (Route Number or Street Name)										or 2) ☐ N ☐ S ☐ E ☐ W Of (Milepost, Nearest Intersecting Route Number or Street Name)									
Accident Description/Officer's Notes AT T/P/O OPERATOR OF VEH #1 WAS TRAVELING STRAIGHT AT A HIGH RATE OF SPEED DISOBEYING STOP SIGN AT INTERSECTION AND RAN RIGHT INTO THE PATH OF ONCOMING BUS(VEH#2) WHICH HAD THE RIGHT OF WAY. AT WHICH POINT THE FRONT OF VEH #2 COLLIDED WITH THE SIDE OF VEH#2 CAUSING SPI TO DRIVER OF VEH#1 AND MULTIPLE INJURIES TO OPERATOR OF VEH#2 AND PASSENGERS																			

	9	10	11	12	13	14	15	16	17	BY	TQ	18	Names of all involved	Date of Death Only
A	1	1	X	1	27	M	6	3	6	EMS	7119		JONES,GEORGE,S	
B	1	3	X	1	25	M	6	3	6	EMS	7119		SMITH,JOHANSON	
C	2	1	2	1	38	M	8	3	6	EMS	7119		STRAKER,SHAWN,H	
D	2	X	X	1	59	M	6	3	6	EMS	7119		THAMES,DONALD	
E	2	X	X	1	61	F	6	3	6	EMS	7119		ZANDER.ALLEN	
F	2	X	X	1	74	F	10	3	6	EMS	7119		TAYLOR,ANNIE LEE	

Officer's Rank and Signature	PO	Tax ID No.	NCIC No.	Precinct	Post/Sector	Reviewing Officer	Date/time reviewed
Print Name	AMATO	037077	03030				

PERSONS KILLED OR INJURED IN ACCIDENT (Letter designation of persons killed or injured must correspond with letter designation on front).

A Last Name JONES		First GEORGE,S	M.I.	D Last Name THAMES		First DONALD	M.I.
Address 526 HERZL ST BROOKLYN NY 11212				Address			
Date of Birth Dec Month 28 Day 85 Year		Telephone (Area Code) ()		Date of Birth Sep Month 30 Day 53 Year		Telephone (Area Code) (347) 671-3614	
B Last Name SMITH		First JOHANSON	M.I.	E Last Name ZANDER		First ALLEN	M.I.
Address 175 UTICA AVE BROOKLYN NY				Address 1067 NEW LOTTES AVE BKLN NY			
Date of Birth Mar Month 14 Day 88 Year		Telephone (Area Code) ()		Date of Birth Oct Month 31 Day 51 Year		Telephone (Area Code) (347) 244-4241	
C Last Name STRAKER		First SHAWN,H	M.I.	Highway Dist. at Scene? ☒ Yes ☐ No			
Address 236 HANCOCK ST BROOKLYN NY 11216				Name: PO AMATO			
Date of Birth Jun Month 29 Day 75 Year		Telephone (Area Code) ()		Shield No. 11856			

ENTER INSURANCE POLICY NUMBER FROM INSURANCE IDENTIFICATION CARD, EXPIRATION DATE (IN ALL CASES), AND VIN.

Vehicle No. 1 SELF	Vehicle No. 2 GOVERNMENT OWNED
Expiration Date	Expiration Date
VIN 2G1FK1EJ5D9199739	VIN 1VHHH3P2656701655

WITNESS (Attach separate sheet, if necessary)

Name	Address	Phone
------	---------	-------

DUPLICATE COPY REQUIRED FOR:

☒ Dept. of Motor Vehicles (if anyone is killed/injured)	☐ Motor Transport Division (RD. vehicle involved)	☐ NYC Taxi & Limousine Comm. (if a Licensed taxi or limousine involved)	☒ Other City Agency (Specify) MTA
☒ Office of Comptroller (if a City vehicle involved)	☐ Personnel Safety Unit (if a P.D. vehicle involved)	☐ Highway Unit	

NOTIFICATIONS: (Enter name, address, and relationship of friend or relative notified. If aided person is unidentified, list Missing Person Squad member who was notified. In either case, give date and time of notification.)

PROPERTY DAMAGED (other than vehicles) FIRE HYDRANT N/E CORNER OF INTERSECTION	OWNER OF PROPERTY (include city agency, where applicable) NYC
--	---

IF NYPD VEHICLE IS INVOLVED:

Police Vehicle-Operator's First Name Last Name		Rank	Shield No.	Tax ID. No.	Command
Make of Vehicle	Year	Type of Vehicle	Plate No.	Dept. Vehicle No.	Assigned To What Command
Equipment in Use At Time of Accident ☐ Siren ☐ Horn ☐ Turret Light ☐ 4-Way Flasher ☐ High-Level Warning Lights ☐ Traffic Cones ☐ Headlights					

ACTIONS OF POLICE VEHICLE

☐ Responding to Code Signal	☐ Complying with Station House Directive
☐ Pursuing Violator	☐ Routine Patrol
☐ Other (Describe)	

New York State Department of Motor Vehicles
POLICE ACCIDENT REPORT (NYC)
 MV-104AN (7/11)

Precinct **81**
 Accident No **755**

Complaint Number **5628**

☐ **AMENDED REPORT**

Accident Date Month Sep Day 9 Year 2013			Day of Week Monday		Military Time 1638		No. of Vehicles 2		No. Injured 43		No. Killed 0		Not Investigated at Scene ☐		Left Scene ☐		Police Photos ☒ Yes ☐ No		
VEHICLE 1										☒ VEHICLE 2 ☐ BICYCLIST ☐ PEDESTRIAN ☐ OTHER PEDESTRIAN									
VEHICLE 1 - Driver License ID Number										VEHICLE 2 - Driver License ID Number									
Driver Name - exactly as printed on license										Driver Name - exactly as printed on license									
Address (include Number & Street)										Address (include Number & Street)									
City or Town State Zip Code										City or Town State Zip Code									
Date of Birth Month Day Year Sex Unlicensed No. of Occupants Public Property Damaged										Date of Birth Month Day Year Sex Unlicensed No. of Occupants Public Property Damaged									
Name-exactly as printed on registration										Name-exactly as printed on registration									
Address (include Number & Street)										Address (include Number & Street)									
City or Town State Zip Code										City or Town State Zip Code									
Plate Number State of Reg. Vehicle Year & Make Vehicle Type Ins. Code										Plate Number State of Reg. Vehicle Year & Make Vehicle Type Ins. Code									
Ticket/Arrest Number(s)										Ticket/Arrest Number(s)									
Violation Section(s)										Violation Section(s)									

VEHICLE 1 DAMAGE CODES

Box 1 - Point of Impact
 Box 2 - Most Damage

Enter up to three more Damage Codes

Vehicle By Towed To

VEHICLE DAMAGE CODING:

1-13. SEE DIAGRAM ON RIGHT.

14. UNDERCARRIAGE 17. DEMOLISHED
 15. TRAILER 18. NO DAMAGE
 16. OVERTURNED 19. OTHER

VEHICLE 2 DAMAGE CODES

Box 1 - Point of Impact
 Box 2 - Most Damage

Enter up to three more Damage Codes

Vehicle By Towed To

Circle the diagram below that describes the accident, or draw your own diagram in space #9. Number the vehicles.

Rear End 1

Overtaking 2

Left Turn 3

Left Turn 4

Right Angle 5

Right Turn 6

Head On 7

Right Turn 8

Sideswipe 9

ACCIDENT DIAGRAM

Cost of repairs to any one vehicle will be more than \$1 000.
☐ Unknown/Unable to Determine ☐ Yes ☐ No

Reference Marker

Coordinates (if available)
 Latitude/Northing:
 Longitude/Easting:

Place Where Accident Occurred: ☐ BRONX ☒ KINGS ☐ NEW YORK ☐ QUEENS ☐ RICHMOND

Road on which accident occurred **E/B HERKIMER STREET**
 (Route Number or Street Name)

at 1) intersecting street **ALBANY AVENUE**
 (Route Number or Street Name)

or 2) ☐ N ☐ S ☐ E ☐ W of **ALBANY AVENUE**
 Feet Miles (Milepost, Nearest Intersecting Route Number or Street Name)

Accident Description/Officer's Notes **AT T/P/O OPERATOR OF VEH #1 WAS TRAVELING STRAIGHT AT A HIGH RATE OF SPEED DISOBEYING STOP SIGN AT INTERSECTION AND RAN RIGHT INTO THE PATH OF ONCOMING BUS(VEH#2) WHICH HAD THE RIGHT OF WAY. AT WHICH POINT THE FRONT OF VEH #2 COLLIDED WITH THE SIDE OF VEH#2 CAUSING SPI TO DRIVER OF VEH#1 AND MULTIPLE INJURIES TO OPERATOR OF VEH#2 AND PASSENGERS**

	B	9	10	11	12	13	14	15	16	17	BY	TO	18	Names of all involved	Date of Death Only
A	2	X	X	1	13	F	8	3	6	EMS	7119			TURNER,BRIANNA	
B	2	X	X	1	11	F	8	3	6	EMS	7119			FLEMING,KIARA	
C	2	X	X	1	41	F	7	3	6	EMS	7119			DUO,CLAUDETTE,D	
D	2	X	X	1	27	M	7	3	6	EMS	7119			FAVORS,TONY	
E	2	X	X	1	X	F	6	3	6	EMS	7119			WHITE,STACEY ANN	
F	2	X	X	1	29	F	1	3	6	EMS	7119			NEDD,ODESSA	

Officer's Rank and Signature **PO**
 Print Name in Full **AMATO**

Tax ID No. **037077**

NCIC No. **03030**

Post/Sector **LHW/V 2**

Reviewing Officer

Date/Time Reviewed

USE
COVER
SHEET

P

PERSONS KILLED OR INJURED IN ACCIDENT (Letter designation of persons killed or injured must correspond with letter designation on front).

A Last Name TAYLOR		First ANNIE LEE		M. I.		D Last Name DUO		First CLAUDETTE D		M. I.									
Address 200 BETHEL LOOP ST BROOKLYN NY 11239						Address 215 STERLING ST BROOKLYN NY													
Date of Birth Oct Month		7 Day		38 Year		Telephone (Area Code) (347)		244-4241		Date of Birth Dec Month		23 Day		71 Year		Telephone (Area Code) (347)		399-0312	
B Last Name TURNER		First BRIANNA		M. I.		E Last Name FAVORS		First TONY		M. I.									
Address 1630 PACIFIC ST BROOKLYN NY						Address 42 ALBANY AVE BROOKLYN NY													
Date of Birth Apr Month		4 Day		00 Year		Telephone (Area Code) ()				Date of Birth Mar Month		21 Day		86 Year		Telephone (Area Code) (347)		639-7637	
C Last Name FLEMING		First KIARA		M. I.		Highway Dist. at Scene? ☒ Yes ☐ No						Name:							
Address 1630 PACIFIC ST BROOKLYN NY																			
Date of Birth May Month		31 Day		02 Year		Telephone (Area Code) ()				PO AMATO						Shield No. 11856			

ENTER INSURANCE POLICY NUMBER FROM INSURANCE IDENTIFICATION CARD, EXPIRATION DATE (IN ALL CASES), AND VIN.

Vehicle No. 1	Vehicle No. 2
Expiration Date	Expiration Date
VIN	VIN

WITNESS (Attach separate sheet, if necessary)

Name	Address	Phone
------	---------	-------

DUPLICATE COPY REQUIRED FOR:

☐ Dept. of Motor Vehicles (if anyone is killed/injured)	☐ Motor Transport Division (RD. vehicle involved)	☐ NYC Taxi & Limousine Comm. (if a Licensed taxi or limousine involved)	☐ Other City Agency (Specify)
☐ Office of Comptroller (if a City vehicle involved)	☐ Personnel Safety Unit (if a P.D. vehicle involved)	☐ Highway Unit	

NOTIFICATIONS: (Enter name, address, and relationship of friend or relative notified. If aided person is unidentified, list Missing Person Squad member who was notified. In either case, give date and time of notification.)

PROPERTY DAMAGED (other than vehicles)	OWNER OF PROPERTY (include city agency, where applicable)

IF NYPD VEHICLE IS INVOLVED:

Police Vehicle-Operator's First Name		Last Name		Rank	Shield No.	Tax ID. No.	Command
Make of Vehicle	Year	Type of Vehicle	Plate No.	Dept. Vehicle No.		Assigned To What Command	
Equipment in Use At Time of Accident							
☐ Siren ☐ Horn ☐ Turret Light ☐ 4-Way Flasher ☐ High-Level Warning Lights ☐ Traffic Cones ☐ Headlights							

ACTIONS OF POLICE VEHICLE

☐ Responding to Code Signal	☐ Complying with Station House Directive
☐ Pursuing Violator	☐ Routine Patrol
☐ Other (Describe)	

New York State Department of Motor Vehicles
POLICE ACCIDENT REPORT (NYC)
 MV-104AN (7/11)

Product 81
 Accident No. 755

Complaint Number 5628

☐ AMENDED REPORT

Accident Date: Month Sep Day 9 Year 2013 Day of Week Monday Military Time 1638
 No. of Vehicles 2 No. Injured 43 No. Killed 0
 Not Investigated at Scene ☐ Left Scene ☐ Police Photos ☒ Yes ☐ No
 Accident Reconstructed ☐

VEHICLE 1 ☒ VEHICLE 2 ☐ BICYCLIST ☐ PEDESTRIAN ☐ OTHER PEDESTRIAN

VEHICLE 1 - Driver License ID Number State of Lic. VEHICLE 2 - Driver License ID Number State of Lic.

Driver Name - exactly as printed on license Driver Name - exactly as printed on license

Address (include Number & Street) Apt. No. Address (include Number & Street) Apt. No.

City or Town State Zip Code City or Town State Zip Code

Date of Birth Month Day Year Sex Unlicensed No. of Occupants 2 Public Property Damaged ☐ Date of Birth Month Day Year Sex Unlicensed No. of Occupants Public Property Damaged ☐

Name - exactly as printed on registration Sex Date of Birth Month Day Year Name - exactly as printed on registration Sex Date of Birth Month Day Year

Address (include Number & Street) Apt. No. Haz. Mat. Code Released Address (include Number & Street) Apt. No. Haz. Mat. Code Released

City or Town State Zip Code City or Town State Zip Code

Plate Number State of Reg. Vehicle Year & Make Vehicle Type Ins. Code Plate Number State of Reg. Vehicle Year & Make Vehicle Type Ins. Code

Ticket/Arrest Number(s) Ticket/Arrest Number(s)

Violation Section(s) Violation Section(s)

Check if involved vehicle is: ☐ more than 95 inches wide; ☐ more than 34 feet long; ☐ operated with an overweight permit; ☐ operated with an overdimension permit.

VEHICLE 1 DAMAGE CODES Box 1 - Point of Impact Box 2 - Most Damage Enter up to three more Damage Codes 3 4 5

Vehicle By Towed To

VEHICLE 2 DAMAGE CODES Box 1 - Point of Impact Box 2 - Most Damage Enter up to three more Damage Codes 3 4 5

Vehicle By Towed To

Circle the diagram below that describes the accident, or draw your own diagram in space #9. Number the vehicles.

ACCIDENT DIAGRAM

Cost of repairs to any one vehicle will be more than \$1 000. ☐ Unknown/Unable to Determine ☐ Yes ☐ No

Reference Marker Coordinates (if available) Latitude/Northing: Longitude/Easting:

Place Where Accident Occurred: ☐ BRONX ☒ KINGS ☐ NEW YORK ☐ QUEENS ☐ RICHMOND

Road on which accident occurred E/B HERKIMER STREET

(Route Number or Street Name)

at 1) intersecting street ALBANY AVENUE

(Route Number or Street Name)

or 2) Feet Miles (Milepost, Nearest Intersecting Route Number or Street Name)

Accident Description/Officer's Notes AT T/P/O OPERATOR OF VEH #1 WAS TRAVELING STRAIGHT AT A HIGH RATE OF SPEED

DISOBEYING STOP SIGN AT INTERSECTION AND RAN RIGHT INTO THE PATH OF ONCOMING BUS(VEH#2) WHICH

HAD THE RIGHT OF WAY. AT WHICH POINT THE FRONT OF VEH #2 COLLIDED WITH THE SIDE OF VEH#2 CAUSING

SPI TO DRIVER OF VEH#1 AND MULTIPLE INJURIES TO OPERATOR OF VEH#2 AND PASSENGERS

USE COVER SHEET

Names of all involved Date of Death Only

BY TO

2 X X 1 53 F 8 3 6 EMS 7119 YOUNG, KEVIN

2 X X 1 45 F 8 3 6 EMS 7119 BUTLER, JOHN

2 X X 1 60 F 7 3 6 EMS 7119 WILLIAMS, FREDDIE

2 X X 1 15 M 7 3 6 EMS 7119 JACOBS, JAIQUAN

2 X X 1 52 F 6 3 6 EMS 7119 SIMMON, JUNIOR

2 X X 1 13 F 1 3 6 EMS 7119 JAYLEIN, GREEN

Officer's Rank and Signature PO

Print Name AMATO

Tax ID No. NCIC No. Precinct Post/Sector Reviewing Officer Date/Time, Reviewed

03030

03030

PERSONS KILLED OR INJURED IN ACCIDENT (Letter designation of persons killed or injured must correspond with letter designation on front)

A Last Name WHITE		First STACEY ANN	M. I.	D Last Name BUTLER		First JOHN	M. I.
Address X				Address 503 FRANKLIN AVE BROOKLYN NY			
Date of Birth X Month X Day X Year		Telephone (Area Code) (X)		Date of Birth Mar Month 22 Day 68 Year		Telephone (Area Code) (X)	
B Last Name NEDD		First ODESSA	M. I.	E Last Name WILLIAMS		First FREDDIE	M. I.
Address 306 HART STREET BROOKLYN NY				Address 182 VERNON AVE BROOKLYN NY			
Date of Birth Dec Month 10 Day 83 Year		Telephone (Area Code) (646) 6645851		Date of Birth Dec Month 9 Day 52 Year		Telephone (Area Code) (X)	
C Last Name YOUNG		First KEVIN	M. I.	Highway Dist. at Scene? ☒ Yes ☐ No			
Address 1191 PARK PL BROOKLYN NY				Name: PO AMATO			
Date of Birth Jul Month 5 Day 60 Year		Telephone (Area Code) (917) 4987890		Shield No. 11856			

ENTER INSURANCE POLICY NUMBER FROM INSURANCE IDENTIFICATION CARD, EXPIRATION DATE (IN ALL CASES), AND VIN.

Vehicle No. 1 _____ Vehicle No. 2 _____
Expiration Date _____ Expiration Date _____
VIN _____ VIN _____

WITNESS (Attach separate sheet, if necessary)

Name _____ Address _____ Phone _____

DUPLICATE COPY REQUIRED FOR:

- | | | | |
|---|--|---|---|
| ☐ Dept. of Motor Vehicles
(if anyone is killed/injured) | ☐ Motor Transport Division
(RD. vehicle involved) | ☐ NYC Taxi & Limousine Comm.
(if a Licensed taxi or limousine involved) | ☐ Other City Agency
(Specify) _____ |
| ☐ Office of Comptroller
(if a City vehicle involved) | ☐ Personnel Safety Unit
(if a P.D. vehicle involved) | ☐ Highway Unit _____ | |

NOTIFICATIONS: (Enter name, address, and relationship of friend or relative notified. If aided person is unidentified, list Missing Person Squad member who was notified. In either case, give date and time of notification.)

PROPERTY DAMAGED (other than vehicles)	OWNER OF PROPERTY (include city agency, where applicable)

IF NYPD VEHICLE IS INVOLVED:

Police Vehicle-Operator's First Name		Last Name		Rank	Shield No.	Tax ID. No.	Command
Make of Vehicle	Year	Type of Vehicle	Plate No.	Dept. Vehicle No.		Assigned To What Command	
Equipment in Use At Time of Accident							
☐ Siren ☐ Horn ☐ Turret Light ☐ 4-Way Flasher ☐ High-Level Warning Lights ☐ Traffic Cones ☐ Headlights							

ACTIONS OF POLICE VEHICLE

- | | |
|--|---|
| ☐ Responding to Code Signal _____ | ☐ Complying with Station House Directive |
| ☐ Pursuing Violator | ☐ Routine Patrol |
| ☐ Other (Describe) _____ | |

New York State Department of Motor Vehicles POLICE ACCIDENT REPORT (NYC) MV-104AN (7/11)

Precinct	81
Accident No.	755

Complaint Number	5628
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☐ AMENDED REPORT

Accident Date	Month: Sep, Day: 9, Year: 2013	Day of Week	Monday	Military Time	1638	No. of Vehicles	2	No. Injured	43	No. Killed	0	Not Investigated at Scene	☐	Left Scene	☐	Police Photos	☒ Yes ☐ No
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VEHICLE 1 - Driver License ID Number	State of Lic.	VEHICLE 2 - Driver License ID Number	State of Lic.
--------------------------------------	---------------	--------------------------------------	---------------

Driver Name - exactly as printed on license	Driver Name - exactly as printed on license
---	---

Address (include Number & Street)	Apt. No.	Address (include Number & Street)	Apt. No.
-----------------------------------	----------	-----------------------------------	----------

City or Town	State	Zip Code	City or Town	State	Zip Code
--------------	-------	----------	--------------	-------	----------

Date of Birth	Sex	Unlicensed	No. of Occupants	Public Property Damaged	Date of Birth	Sex	Unlicensed	No. of Occupants	Public Property Damaged
---------------	-----	------------	------------------	-------------------------	---------------	-----	------------	------------------	-------------------------

Name - exactly as printed on registration	Sex	Date of Birth	Name - exactly as printed on registration	Sex	Date of Birth
---	-----	---------------	---	-----	---------------

Address (include Number & Street)	Apt. No.	Haz. Mat. Code	Released	Address (include Number & Street)	Apt. No.	Haz. Mat. Code	Released
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City or Town	State	Zip Code	City or Town	State	Zip Code
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Plate Number	State of Reg.	Vehicle Year & Make	Vehicle Type	Ins. Code	Plate Number	State of Reg.	Vehicle Year & Make	Vehicle Type	Ins. Code
--------------	---------------	---------------------	--------------	-----------	--------------	---------------	---------------------	--------------	-----------

Ticket/Arrest Number(s)	Ticket/Arrest Number(s)
-------------------------	-------------------------

Violation Section(s)	Violation Section(s)
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Check if involved vehicle is:	Check if involved vehicle is:	Circle the diagram below that describes the accident, or draw your own diagram in space #9. Number the vehicles.
-------------------------------	-------------------------------	--

VEHICLE 1 DAMAGE CODES	VEHICLE 2 DAMAGE CODES	ACCIDENT DIAGRAM
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Box 1 - Point of Impact	Box 2 - Most Damage	Box 1 - Point of Impact	Box 2 - Most Damage
-------------------------	---------------------	-------------------------	---------------------

Vehicle By Towed	Vehicle By Towed
------------------	------------------

VEHICLE DAMAGE CODING:	1-13. SEE DIAGRAM ON RIGHT	14. UNDERCARRIAGE	17. DEMOLISHED	15. TRAILER	18. NO DAMAGE	16. OVERTURNED	19. OTHER
------------------------	----------------------------	-------------------	----------------	-------------	---------------	----------------	-----------

Reference Marker	Coordinates (if available)	Place Where Accident Occurred:
------------------	----------------------------	--------------------------------

Latitude/Northing:	Road on which accident occurred
--------------------	---------------------------------

Longitude/Easting:	at 1) intersecting street
--------------------	---------------------------

or 2)	at 2) intersecting street
-------	---------------------------

Accident Description/Officer's Notes	AT T/P/O OPERATOR OF VEH #1 WAS TRAVELING STRAIGHT AT A HIGH RATE OF SPEED
--------------------------------------	--

DISOBEYING STOP SIGN AT INTERSECTION AND RAN RIGHT INTO THE PATH OF ONCOMING BUS(VEH#2) WHICH	HAD THE RIGHT OF WAY. AT WHICH POINT THE FRONT OF VEH #2 COLLIDED WITH THE SIDE OF VEH#2 CAUSING
---	--

SPI TO DRIVER OF VEH#1 AND MULTIPLE INJURIES TO OPERATOR OF VEH#2 AND PASSENGERS	
--	--

Officer's Rank and Signature	PO
------------------------------	----

Print Name	AMATEO
------------	--------

Tax ID No.	NCIC No.	Precinct	Post/Sector	Reviewing Officer	Date/Time, Reviewed
------------	----------	----------	-------------	-------------------	---------------------

03030					
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PERSONS KILLED OR INJURED IN ACCIDENT (Letter designation of persons killed or injured must correspond with letter designation on front).

A Last Name JACOBS		First JAQUAN	M. I.	D Last Name WILLIAMS		First RAMEEK	M. I.
Address 108 ST MARKS AVENUE BROOKLYN NY				Address 2937 AVE W BKLYN NY			
Date of Birth Jan Month 28 Day 98 Year		Telephone (Area Code) (646) 7447983		Date of Birth Jul Month 15 Day 05 Year		Telephone (Area Code) (347) 7710669	
B Last Name SIMMON		First JUNIOR	M. I.	E Last Name BUTLER		First DUCHAUN	M. I.
Address 1462 LORING AVE BROOKLYN NY				Address 22 MILLER ST MONTCLAIRE NJ 07042			
Date of Birth Apr Month 27 Day 61 Year		Telephone (Area Code) (347) 9934952		Date of Birth Jan Month 11 Day 78 Year		Telephone (Area Code) (908) 6929745	
C Last Name JAYLEIN		First GREEN	M. I.	Highway Dist. at Scene? ☒ Yes ☐ No			
Address 1630 PACIFIC ST BKLYN NY				Name: PO AMATO			
Date of Birth Apr Month 6 Day 00 Year		Telephone (Area Code) (X)		Shield No. 11856			

ENTER INSURANCE POLICY NUMBER FROM INSURANCE IDENTIFICATION CARD, EXPIRATION DATE (IN ALL CASES) , AND VIN.

Vehicle No. 1 _____	Vehicle No. 2 _____
Expiration Date _____	Expiration Date _____
VIN _____	VIN _____

WITNESS (Attach separate sheet, if necessary)

Name _____	Address _____	Phone _____
------------	---------------	-------------

DUPLICATE COPY REQUIRED FOR:

☐ Dept. of Motor Vehicles (if anyone is killed/injured)	☐ Motor Transport Division (RD. vehicle involved)	☐ NYC Taxi & Limousine Comm. (if a Licensed taxi or limousine involved)	☐ Other City Agency (Specify) _____
☐ Office of Comptroller (if a City vehicle involved)	☐ Personnel Safety Unit (if a P.D. vehicle involved)	☐ Highway Unit _____	

NOTIFICATIONS: (Enter name, address, and relationship of friend or relative notified. If aided person is unidentified, list Missing Person Squad member who was notified. In either case, give date and time of notification.)

PROPERTY DAMAGED (other than vehicles)	OWNER OF PROPERTY (include city agency, where applicable)

IF NYPD VEHICLE IS INVOLVED:

Police Vehicle-Operator's First Name		Last Name		Rank	Shield No.	Tax ID. No.	Command
Make of Vehicle	Year	Type of Vehicle	Plate No.	Dept. Vehicle No.		Assigned To What Command	
Equipment in Use At Time of Accident							
☐ Siren ☐ Horn ☐ Turret Light ☐ 4-Way Flasher ☐ High-Level Warning Lights ☐ Traffic Cones ☐ Headlights							

ACTIONS OF POLICE VEHICLE

☐ Responding to Code Signal _____	☐ Complying with Station House Directive
☐ Pursuing Violator	☐ Routine Patrol
☐ Other (Describe) _____	

New York State Department of Motor Vehicles
POLICE ACCIDENT REPORT (NYC)
MV-104AN (7/11)

Precinct	81
Accident No.	755

Complaint Number	5628
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☐ AMENDED REPORT

Accident Date Month: Sep Day: 9 Year: 2013	Day of Week Monday	Military Time 1638	No. of Vehicles 2	No. Injured 43	No. Killed 0	Not Investigated at Scene ☐	Left Scene ☐	Police Photos ☒ Yes ☐ No																					
VEHICLE 1			☒ VEHICLE 2 ☐ BICYCLIST ☐ PEDESTRIAN ☐ OTHER PEDESTRIAN																										
VEHICLE 1 - Driver License ID Number			State of Lic.			VEHICLE 2 - Driver License ID Number			State of Lic.																				
Driver Name - exactly as printed on license			Address (include Number & Street)			Apt. No.			Driver Name - exactly as printed on license			Address (include Number & Street)			Apt. No.														
City or Town			State			Zip Code			City or Town			State			Zip Code														
Date of Birth Month: Day: Year:			Sex			Unlicensed ☐			No. of Occupants 2			Public Property Damaged ☐			Date of Birth Month: Day: Year:			Sex			Unlicensed ☐			No. of Occupants			Public Property Damaged ☐		
Name - exactly as printed on registration			Sex			Date of Birth Month: Day: Year:			Name - exactly as printed on registration			Sex			Date of Birth Month: Day: Year:														
Address (include Number & Street)			Apt. No.			Haz. Mat. Code			Released ☐			Address (include Number & Street)			Apt. No.			Haz. Mat. Code			Released ☐								
City or Town			State			Zip Code			City or Town			State			Zip Code														
Plate Number			State of Reg.			Vehicle Year & Make			Vehicle Type			Ins. Code			Plate Number			State of Reg.			Vehicle Year & Make			Vehicle Type			Ins. Code		
Ticket/Arrest Number(s)			Violation Section(s)			Ticket/Arrest Number(s)			Violation Section(s)																				
Check if involved vehicle is: ☐ more than 95 inches wide; ☐ more than 34 feet long; ☐ operated with an overweight permit; ☐ operated with an overdimension permit.			Check if involved vehicle is: ☐ more than 95 inches wide; ☐ more than 34 feet long; ☐ operated with an overweight permit; ☐ operated with an overdimension permit.			Circle the diagram below that describes the accident, or draw your own diagram in space #9. Number the vehicles																							
VEHICLE 1 DAMAGE CODES Box 1 - Point of Impact Box 2 - Most Damage Enter up to three more Damage Codes			VEHICLE 2 DAMAGE CODES Box 1 - Point of Impact Box 2 - Most Damage Enter up to three more Damage Codes			ACCIDENT DIAGRAM Rear End 1, Left Turn 3, Right Angle 4, Right Turn 5, Head On 7, Overtaking 2, Left Turn 6, Right Turn 8, Sideswipe 9																							
Vehicle By Towed: To			Vehicle By Towed: To			Cost of repairs to any one vehicle will be more than \$1,000. ☐ Unknown/Unable to Determine ☐ Yes ☐ No																							
VEHICLE DAMAGE CODING: 1-13. SEE DIAGRAM ON RIGHT. 14. UNDERCARRIAGE 17. DEMOLISHED 15. TRAILER 18. NO DAMAGE 16. OVERTURNED 19. OTHER			Place Where Accident Occurred: ☐ BRONX ☒ KINGS ☐ NEW YORK ☐ QUEENS ☐ RICHMOND Road on which accident occurred E/B HERKIMER STREET (Route Number or Street Name) at 1) intersecting street ALBANY AVENUE (Route Number or Street Name) or 2) ☐ N ☐ S ☐ E ☐ W of Feet Miles (Milepost, Nearest Intersecting Route Number or Street Name)			Reference Marker Coordinates (if available) Latitude/Northing: Longitude/Easting:																							
Accident Description/Officer's Notes AT T/P/O OPERATOR OF VEH #1 WAS TRAVELING STRAIGHT AT A HIGH RATE OF SPEED DISOBEYING STOP SIGN AT INTERSECTION AND RAN RIGHT INTO THE PATH OF ONCOMING BUS(VEH#2) WHICH HAD THE RIGHT OF WAY. AT WHICH POINT THE FRONT OF VEH #2 COLLIDED WITH THE SIDE OF VEH#2 CAUSING SPI TO DRIVER OF VEH#1 AND MULTIPLE INJURIES TO OPERATOR OF VEH#2 AND PASSENGERS																													

	8	9	10	11	12	13	14	15	16	17	BY	TO	18	Names of all involved	Date of Death Only
A	2	X	X	1	15	M	9	3	6	EMS	7119			BELL,KENNETH	
B	2	X	X	1	54	F	8	3	6	EMS	7119			SINCLAIR,JOYCE	
C	2	X	X	1	59	F	1	3	6	EMS	7119			WOOLBRIGHT,GERALDINE	
D	2	X	X	1	13	M	11	3	6	EMS	7119			BELL,MIKE	
E	2	X	X	1	31	F	1	3	6	EMS	7119			LEWIS,ATHENA	
F	2	X	X	1	22	F	11	3	6	EMS	7119			PANIAGUA,AMELIA	

Officer's Rank and Signature PO	Tax ID No.	NCIC No.	Precinct	Post/Sector	Reviewing Officer	Date/Time, Reviewed
Print Name A M A T O		03030				

PERSONS KILLED OR INJURED IN ACCIDENT (Letter designation of persons killed or injured must correspond with letter designation on front)

A Last Name WALLACE		First JULIUS		M. I.		D Last Name SPENCER		First SHAKIRA		M. I.	
Address 145 JAMAICA AVE BKLYN NY						Address 128 NEW YORK AVE BKLYN NY 11217					
Date of Birth Dec Month		15 Day		50 Year		Telephone (Area Code) (347)		2389809			
B Last Name PHILLIP		First ARIS		M. I.		E Last Name BELL		First KENNETH		M. I.	
Address 608 OSBORNE ST BKLYN NY						Address 683 BROADWAY BKLYN NY					
Date of Birth Apr Month		12 Day		99 Year		Telephone (Area Code) ()					
C Last Name PHILLIP		First JUSTIN		M. I.		Date of Birth Dec Month		12 Day		97 Year	
Address 608 OSBORNE ST BKLYN NY						Highway Dist. at Scene? ☒ Yes ☐ No					
Date of Birth Mar Month		28 Day		98 Year		Telephone (Area Code) ()				Name: PO AMATO	
						Shield No. 11856					

ENTER INSURANCE POLICY NUMBER FROM INSURANCE IDENTIFICATION CARD, EXPIRATION DATE (IN ALL CASES), AND VIN.

Vehicle No. 1 _____	Vehicle No. 2 _____
Expiration Date _____	Expiration Date _____
VIN _____	VIN _____

WITNESS (Attach separate sheet, if necessary)

Name _____	Address _____	Phone _____
------------	---------------	-------------

DUPLICATE COPY REQUIRED FOR:

☐ Dept. of Motor Vehicles (if anyone is killed/injured)	☐ Motor Transport Division (RD. vehicle involved)	☐ NYC Taxi & Limousine Comm. (if a Licensed taxi or limousine involved)	☐ Other City Agency (Specify) _____
☐ Office of Comptroller (if a City vehicle involved)	☐ Personnel Safety Unit (if a P.D. vehicle involved)	☐ Highway Unit _____	

NOTIFICATIONS: (Enter name, address, and relationship of friend or relative notified. If aided person is unidentified, list Missing Person Squad member who was notified. In either case, give date and time of notification.)

PROPERTY DAMAGED (other than vehicles)

OWNER OF PROPERTY (include city agency, where applicable)

IF NYPD VEHICLE IS INVOLVED:

Police Vehicle-Operator's First Name _____		Last Name _____		Rank _____	Shield No. _____	Tax ID. No. _____	Command _____
Make of Vehicle _____	Year _____	Type of Vehicle _____	Plate No. _____	Dept. Vehicle No. _____		Assigned To What Command _____	

Equipment in Use At Time of Accident

☐ Siren ☐ Horn ☐ Turret Light ☐ 4-Way Flasher ☐ High-Level Warning Lights ☐ Traffic Cones ☐ Headlights

ACTIONS OF POLICE VEHICLE

☐ Responding to Code Signal _____	☐ Complying with Station House Directive
☐ Pursuing Violator	☐ Routine Patrol
☐ Other (Describe) _____	

New York State Department of Motor Vehicles
POLICE ACCIDENT REPORT (NYC)
 MV-104AN (7/11)

Precinct **81**
 Accident No **755**

Complaint Number **5628**

☐ **AMENDED REPORT**

Accident Date Month Sep Day 9 Year 2013		Day of Week Monday	Military Time 1638	No. of Vehicles 2	No. Injured 43	No. Killed 0	Not Investigated at Scene ☐	Left Scene ☐	Police Photos ☒ Yes ☐ No				
VEHICLE 1				☒ VEHICLE 2 ☐ BICYCLIST ☐ PEDESTRIAN ☐ OTHER PEDESTRIAN									
VEHICLE 1 - Driver License ID Number				State of Lic.		VEHICLE 2 - Driver License ID Number				State of Lic.			
Driver Name - exactly as printed on license				Address (include Number & Street)		Apt. No.		Driver Name - exactly as printed on license				Address (include Number & Street)	
City or Town				State		Zip Code		City or Town				State	
Date of Birth Month Day Year				Sex		Unlicensed ☐		No. of Occupants 2		Public Property Damaged ☐		Date of Birth Month Day Year	
Name-exactly as printed on registration				Sex		Date of Birth Month Day Year		Name-exactly as printed on registration		Sex		Date of Birth Month Day Year	
Address (include Number & Street)				Apt. No.		Haz. Mat. Code		Released ☐		Address (include Number & Street)			
City or Town				State		Zip Code		City or Town				State	
Plate Number				State of Reg.		Vehicle Year & Make		Vehicle Type		Ins. Code		Plate Number	
Ticket/Arrest Number(s)				Violation Section(s)		Ticket/Arrest Number(s)		Violation Section(s)					
Check if involved vehicle is: ☐ more than 95 inches wide; ☐ more than 34 feet long; ☐ operated with an overweight permit; ☐ operated with an overdimension permit.				Check if involved vehicle is: ☐ more than 95 inches wide; ☐ more than 34 feet long; ☐ operated with an overweight permit; ☐ operated with an overdimension permit.				Circle the diagram below that describes the accident, or draw your own diagram in space #9. Number the vehicles.					
VEHICLE 1 DAMAGE CODES Box 1 - Point of Impact Box 2 - Most Damage Enter up to three more Damage Codes				VEHICLE 2 DAMAGE CODES Box 1 - Point of Impact Box 2 - Most Damage Enter up to three more Damage Codes				ACCIDENT DIAGRAM 1. Rear End 2. Left Turn 3. Right Angle 4. Right Turn 5. Head On 6. Overtaking 7. Left Turn 8. Right Turn 9. Sideswipe					
Vehicle By Towed to				Vehicle By Towed to				Cost of repairs to any one vehicle will be more than \$1 000. ☐ Unknown/Unable to Determine ☐ Yes ☐ No					
VEHICLE DAMAGE CODING: 1-13. SEE DIAGRAM ON RIGHT. 14. UNDERCARRIAGE 17. DEMOLISHED 15. TRAILER 18. NO DAMAGE 16. OVERTURNED 19. OTHER													
Reference Marker		Coordinates (if available) Latitude/Northing:		Place Where Accident Occurred: ☐ BRONX ☒ KINGS ☐ NEW YORK ☐ QUEENS ☐ RICHMOND Road on which accident occurred E/B HERKIMER STREET (Route Number or Street Name) at 1) intersecting street ALBANY AVENUE (Route Number or Street Name) or 2) ☐ N ☐ S ☐ E ☐ W of Feet Miles (Milepost/Nearest Intersecting Route Number or Street Name)									
Accident Description/Officer's Notes AT T/P/O OPERATOR OF VEH #1 WAS TRAVELING STRAIGHT AT A HIGH RATE OF SPEED DISOBEYING STOP SIGN AT INTERSECTION AND RAN RIGHT INTO THE PATH OF ONCOMING BUS(VEH#2) WHICH HAD THE RIGHT OF WAY. AT WHICH POINT THE FRONT OF VEH #2 COLLIDED WITH THE SIDE OF VEH#2 CAUSING SPI TO DRIVER OF VEH#1 AND MULTIPLE INJURIES TO OPERATOR OF VEH#2 AND PASSENGERS													

USE
COVER
SHEET

P

	8	9	10	11	12	13	14	15	16	17	BY	TO	18	Names of all involved	Date of Death Only			
A	2	X	X	1	11	M	6	3	6	EMS	7119	ANDERSON, JEREMIAH						
B	2	X	X	1	5	M	1	3	6	EMS	7119	CHATMAN, JAELE						
C	2	X	X	1	10	F	9	3	6	EMS	7119	NEVEAH, MAJOR SMALL						
D	2	X	X	1	78	M	11	3	6	EMS	7119	FLEMING, ALBERTO						
E	2	X	X	1	30	M	8	3	6	EMS	7119	SMALLWOOD, DAVID						
F	2	X	X	1	13	F	4	3	6	EMS	7119	CHATMAN, NAZJE						
Officer's Rank and Signature ➡ PO							Tax ID No.		NCIC No.		Precinct		Post/Sector		Reviewing Officer		Date/Time, Reviewed	
Print Name AMATO							037075		03030									

PERSONS KILLED OR INJURED IN ACCIDENT (Letter designation of persons killed or injured must correspond with letter designation on front)

A Last Name SINCLAIR		First JOYCE		M. I.		D Last Name LEWIS		First ATHENA		M. I.	
Address 283 LOTT AVE BKLN NY 11217						Address 522 PUTNAM AVE BKLN NY					
Date of Birth Jan Month 3 Day 59 Year		Telephone (Area Code) (347) 2684982				Date of Birth May Month 30 Day 82 Year		Telephone (Area Code) (917) 2158593			
B Last Name WOOLBRIGHT		First GERALDINE		M. I.		E Last Name PANIAGUA		First AMELIA		M. I.	
Address 300 VERNON AVE BROOLYN NY						Address 677 ESSEX ST BKLYN NY					
Date of Birth Jun Month 10 Day 56 Year		Telephone (Area Code) (347) 3537040				Date of Birth Oct Month 31 Day 90 Year		Telephone (Area Code) (917) 6034189			
C Last Name BELL		First MIKE		M. I.		Highway Dist. at Scene? ☒ Yes ☐ No					
Address 215 STERLING ST BKLN NY						Name: PO AMATO					
Date of Birth Mar Month 29 Day 00 Year		Telephone (Area Code) ()				Shield No. 11856					

ENTER INSURANCE POLICY NUMBER FROM INSURANCE IDENTIFICATION CARD, EXPIRATION DATE (IN ALL CASES), AND VIN.

Vehicle No. 1 _____ Vehicle No. 2 _____

Expiration Date _____ Expiration Date _____

VIN _____ VIN _____

WITNESS (Attach separate sheet, if necessary)

Name	Address	Phone

DUPLICATE COPY REQUIRED FOR:

☐ Dept. of Motor Vehicles (if anyone is killed/injured)	☐ Motor Transport Division (RD. vehicle involved)	☐ NYC Taxi & Limousine Comm. (if a Licensed taxi or limousine involved)	☐ Other City Agency (Specify)
☐ Office of Comptroller (if a City vehicle involved)	☐ Personnel Safety Unit (if a P.D. vehicle involved)	☐ Highway Unit _____	

NOTIFICATIONS: (Enter name, address, and relationship of friend or relative notified. If aided person is unidentified, list Missing Person Squad member who was notified. In either case, give date and time of notification.)

PROPERTY DAMAGED (other than vehicles)	OWNER OF PROPERTY (include city agency, where applicable)

IF NYPD VEHICLE IS INVOLVED:

Police Vehicle-Operator's First Name		Last Name		Rank	Shield No.	Tax ID. No.	Command
Make of Vehicle	Year	Type of Vehicle	Plate No.	Dept. Vehicle No.		Assigned To What Command	
Equipment in Use At Time of Accident							
☐ Siren ☐ Horn ☐ Turret Light ☐ 4-Way Flasher ☐ High-Level Warning Lights ☐ Traffic Cones ☐ Headlights							

ACTIONS OF POLICE VEHICLE

☐ Responding to Code Signal _____	☐ Complying with Station House Directive
☐ Pursuing Violator	☐ Routine Patrol
☐ Other (Describe) _____	

POLICE ACCIDENT REPORT (NYC)

MV-104AN (7/11)

precinct	81
Accident No	755

Complaint Number 5628

☐ AMENDED REPORT

Accident Date	Month	Day	Year	Day of Week	Military Time	No. of Vehicles	No. Injured	No. Killed	Not Investigated at Scene	Left Scene	Police Photos
Sep	9	2013	Monday	1638	2	43	0	☐	☐	☒ Yes ☐ No	

VEHICLE 1	☒ VEHICLE 2 ☐ BICYCLIST ☐ PEDESTRIAN ☐ OTHER PEDESTRIAN
-----------	--

VEHICLE 1 - Driver License ID Number	State of Lic	VEHICLE 2 - Driver License ID Number	State of Lic
--------------------------------------	--------------	--------------------------------------	--------------

Driver Name - exactly as printed on license	Driver Name - exactly as printed on license
---	---

Address (include Number & Street)	Apt. No.	Address (include Number & Street)	Apt. No.
-----------------------------------	----------	-----------------------------------	----------

City or Town	State	Zip Code	City or Town	State	Zip Code
--------------	-------	----------	--------------	-------	----------

Date of Birth	Sex	Unlicensed	No. of Occupants	Public Property Damaged	Date of Birth	Sex	Unlicensed	No. of Occupants	Public Property Damaged
Month	Day	Year	2	☐	Month	Day	Year	☐	☐

Name - exactly as printed on registration	Sex	Date of Birth	Name - exactly as printed on registration	Sex	Date of Birth
Month	Day	Year	Month	Day	Year

Address (include Number & Street)	Apt. No.	Haz. Mat. Code	Released	Address (include Number & Street)	Apt. No.	Haz. Mat. Code	Released
-----------------------------------	----------	----------------	----------	-----------------------------------	----------	----------------	----------

City or Town	State	Zip Code	City or Town	State	Zip Code
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Plate Number	State of Reg	Vehicle Year & Make	Vehicle Type	Ins. Code	Plate Number	State of Reg	Vehicle Year & Make	Vehicle Type	Ins. Code
--------------	--------------	---------------------	--------------	-----------	--------------	--------------	---------------------	--------------	-----------

Ticket/Arrest Number(s)	Ticket/Arrest Number(s)
-------------------------	-------------------------

Violation Section(s)	Violation Section(s)
----------------------	----------------------

Check if involved vehicle is:	Check if involved vehicle is:
☐ more than 95 inches wide;	☐ more than 95 inches wide;
☐ more than 34 feet long;	☐ more than 34 feet long;
☐ operated with an overweight permit;	☐ operated with an overweight permit;
☐ operated with an overdimension permit.	☐ operated with an overdimension permit.

Circle the diagram below that describes the accident, or draw your own diagram in space #9. Number the vehicles.
--

Rear End	Left Turn	Right Angle	Right Turn	Head On
1	3	4	5	7

Overtaking	Left Turn	Right Turn	Sideswipe
2	6	8	9

ACCIDENT DIAGRAM

Cost of repairs to any one vehicle will be more than \$1,000
☐ Unknown/Unable to Determine ☐ Yes ☐ No

Reference Marker	Coordinates (if available)	Place Where Accident Occurred:
Latitude/Northing	Longitude/Easting	Read on which accident occurred

at 1) intersecting street	(Route Number or Street Name)
or 2) _____	(Route Number or Street Name)

Feet Miles	(Milepost, Nearest intersecting Route Number or Street Name)
------------	--

Accident Description/Officer's Notes

AT T/P/O OPERATOR OF VEH #1 WAS TRAVELING STRAIGHT AT A HIGH RATE OF SPEED
--

DISOBEYING STOP SIGN AT INTERSECTION AND RAN RIGHT INTO THE PATH OF ONCOMING BUS(VEH#2) WHICH

HAD THE RIGHT OF WAY. AT WHICH POINT THE FRONT OF VEH #2 COLLIDED WITH THE SIDE OF VEH#2 CAUSING
--

SPI TO DRIVER OF VEH#1 AND MULTIPLE INJURIES TO OPERATOR OF VEH#2 AND PASSENGERS
--

USE COVER SHEET

P

Reference Marker	Coordinates (if available)	Place Where Accident Occurred:
Latitude/Northing	Longitude/Easting	Read on which accident occurred

at 1) intersecting street	(Route Number or Street Name)
or 2) _____	(Route Number or Street Name)

Feet Miles	(Milepost, Nearest intersecting Route Number or Street Name)
------------	--

Accident Description/Officer's Notes

AT T/P/O OPERATOR OF VEH #1 WAS TRAVELING STRAIGHT AT A HIGH RATE OF SPEED
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DISOBEYING STOP SIGN AT INTERSECTION AND RAN RIGHT INTO THE PATH OF ONCOMING BUS(VEH#2) WHICH

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--

SPI TO DRIVER OF VEH#1 AND MULTIPLE INJURIES TO OPERATOR OF VEH#2 AND PASSENGERS
--

USE COVER SHEET

P

Reference Marker	Coordinates (if available)	Place Where Accident Occurred:
Latitude/Northing	Longitude/Easting	Read on which accident occurred

at 1) intersecting street	(Route Number or Street Name)
or 2) _____	(Route Number or Street Name)

Feet Miles	(Milepost, Nearest intersecting Route Number or Street Name)
------------	--

Accident Description/Officer's Notes

AT T/P/O OPERATOR OF VEH #1 WAS TRAVELING STRAIGHT AT A HIGH RATE OF SPEED
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--

SPI TO DRIVER OF VEH#1 AND MULTIPLE INJURIES TO OPERATOR OF VEH#2 AND PASSENGERS
--

USE COVER SHEET

P

Reference Marker	Coordinates (if available)	Place Where Accident Occurred:
Latitude/Northing	Longitude/Easting	Read on which accident occurred

at 1) intersecting street	(Route Number or Street Name)
or 2) _____	(Route Number or Street Name)

Feet Miles	(Milepost, Nearest intersecting Route Number or Street Name)
------------	--

Accident Description/Officer's Notes

AT T/P/O OPERATOR OF VEH #1 WAS TRAVELING STRAIGHT AT A HIGH RATE OF SPEED
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DISOBEYING STOP SIGN AT INTERSECTION AND RAN RIGHT INTO THE PATH OF ONCOMING BUS(VEH#2) WHICH

HAD THE RIGHT OF WAY. AT WHICH POINT THE FRONT OF VEH #2 COLLIDED WITH THE SIDE OF VEH#2 CAUSING
--

SPI TO DRIVER OF VEH#1 AND MULTIPLE INJURIES TO OPERATOR OF VEH#2 AND PASSENGERS
--

USE COVER SHEET

P

Reference Marker	Coordinates (if available)	Place Where Accident Occurred:
Latitude/Northing	Longitude/Easting	Read on which accident occurred

at 1) intersecting street	(Route Number or Street Name)
or 2) _____	(Route Number or Street Name)

Feet Miles	(Milepost, Nearest intersecting Route Number or Street Name)
------------	--

Accident Description/Officer's Notes

AT T/P/O OPERATOR OF VEH #1 WAS TRAVELING STRAIGHT AT A HIGH RATE OF SPEED
--

PERSONS KILLED OR INJURED IN ACCIDENT (Letter designation of persons killed or injured must correspond with letter designation on front).

A Last Name ANDERSON		First JEREMIAH	M. I.	D Last Name FLEMING		First ALBERTO	M. I.
Address 1484 EASTERN PKWY BKLYN				Address 488 HEGEMAN AVE BROOKLYN NY			
Date of Birth Dec Month 16 Day 01 Year		Telephone (Area Code) (347) 5421278		Date of Birth Sep Month 7 Day 35 Year		Telephone (Area Code) (718) 2725607	
B Last Name CHATMAN		First JAEI	M. I.	E Last Name SMALLWOOD		First DAVID	M. I.
Address 1484 EASTERN PKWY BKLYN				Address 234 MACON ST BRKLN NY			
Date of Birth Mar Month 7 Day 00 Year		Telephone (Area Code) ()		Date of Birth Oct Month 5 Day 32 Year		Telephone (Area Code) (347) 4512454	
C Last Name NEVEAH		First MAJOR SMALL	M. I.	Highway Dist. at Scene? ☒ Yes ☐ No			
Address 300 VERNON AVE BKLYN NY				Name: PO AMATO			
Date of Birth Jun Month 18 Day 03 Year		Telephone (Area Code) (347) 6630267		Shield No. 11856			

ENTER INSURANCE POLICY NUMBER FROM INSURANCE IDENTIFICATION CARD, EXPIRATION DATE (IN ALL CASES), AND VIN.

Vehicle No. 1 _____ Vehicle No. 2 _____
Expiration Date _____ Expiration Date _____
VIN _____ VIN _____

WITNESS (Attach separate sheet, if necessary)

Name _____ Address _____ Phone _____

DUPLICATE COPY REQUIRED FOR:

- | | | | |
|---|--|---|---|
| ☐ Dept. of Motor Vehicles
(if anyone is killed/injured) | ☐ Motor Transport Division
(RD. vehicle involved) | ☐ NYC Taxi & Limousine Comm.
(if a Licensed taxi or limousine involved) | ☐ Other City Agency
(Specify) _____ |
| ☐ Office of Comptroller
(if a City vehicle involved) | ☐ Personnel Safety Unit
(if a P.D. vehicle involved) | ☐ Highway Unit _____ | |

NOTIFICATIONS: (Enter name, address, and relationship of friend or relative notified. If aided person is unidentified, list Missing Person Squad member who was notified. In either case, give date and time of notification.)

PROPERTY DAMAGED (other than vehicles)	OWNER OF PROPERTY (include city agency, where applicable)

IF NYPD VEHICLE IS INVOLVED:

Police Vehicle-Operator's First Name		Last Name		Rank	Shield No.	Tax ID. No.	Command
Make of Vehicle	Year	Type of Vehicle	Plate No.	Dept. Vehicle No.		Assigned To What Command	
Equipment in Use At Time of Accident							
☐ Siren ☐ Horn ☐ Turret Light ☐ 4-Way Flasher ☐ High-Level Warning Lights ☐ Traffic Cones ☐ Headlights							

ACTIONS OF POLICE VEHICLE

- | | |
|--|---|
| ☐ Responding to Code Signal _____ | ☐ Complying with Station House Directive |
| ☐ Pursuing Violator | ☐ Routine Patrol |
| ☐ Other (Describe) _____ | |

New York State Department of Motor Vehicles
POLICE ACCIDENT REPORT (NYC)
 MV-104AN (7/11)

Report No. **81**
 Accident No. **755**

Complaint Number **5628**

☐ **AMENDED REPORT**

Accident Date: Month **Sep** Day **9** Year **2013** Day of Week **Monday** Military Time **1638** No. of Vehicles **2** No. Injured **43** No. Killed **0** Not Investigated at Scene ☐ Left Scene ☐ Police Photos ☒ Yes ☐ No
 Accident Reconstructed ☐

VEHICLE 1 ☒ VEHICLE 2 ☐ BICYCLIST ☐ PEDESTRIAN ☐ OTHER PEDESTRIAN

VEHICLE 1 - Driver License ID Number _____ State of Lic _____ VEHICLE 2 - Driver License ID Number _____ State of Lic _____

Driver Name - exactly as printed on license _____ Driver Name - exactly as printed on license _____

Address (include Number & Street) _____ Apt. No. _____ Address (include Number & Street) _____ Apt. No. _____

City or Town _____ State _____ Zip Code _____ City or Town _____ State _____ Zip Code _____

Date of Birth _____ Sex _____ Unlicensed ☐ No. of Occupants **2** Public Property Damaged ☐ Date of Birth _____ Sex _____ Unlicensed ☐ No. of Occupants _____ Public Property Damaged ☐

Name - exactly as printed on registration _____ Sex _____ Date of Birth _____ Name - exactly as printed on registration _____ Sex _____ Date of Birth _____

Address (include Number & Street) _____ Apt. No. _____ Haz. Mat. Code _____ Released ☐ Address (include Number & Street) _____ Apt. No. _____ Haz. Mat. Code _____ Released ☐

City or Town _____ State _____ Zip Code _____ City or Town _____ State _____ Zip Code _____

Plate Number _____ State of Reg _____ Vehicle Year & Make _____ Vehicle Type _____ Ins. Code _____ Plate Number _____ State of Reg _____ Vehicle Year & Make _____ Vehicle Type _____ Ins. Code _____

Ticket/Arrest Number(s) _____ Ticket/Arrest Number(s) _____

Violation Section(s) _____ Violation Section(s) _____

Check if involved vehicle is: ☐ more than 95 inches wide; ☐ more than 34 feet long; ☐ operated with an overweight permit; ☐ operated with an overdimension permit.

Check if involved vehicle is: ☐ more than 95 inches wide; ☐ more than 34 feet long; ☐ operated with an overweight permit; ☐ operated with an overdimension permit.

Circle the diagram below that describes the accident, or draw your own diagram in space #9. Number the vehicles.

VEHICLE 1 DAMAGE CODES: Box 1 - Point of Impact _____ Box 2 - Most Damage _____ Enter up to three more Damage Codes _____

VEHICLE 2 DAMAGE CODES: Box 1 - Point of Impact _____ Box 2 - Most Damage _____ Enter up to three more Damage Codes _____

Vehicle By Towed _____ To _____

Vehicle By Towed _____ To _____

VEHICLE DAMAGE CODING: 1-13. SEE DIAGRAM ON RIGHT. 14. UNDERCARRIAGE 17. DEMOLISHED 15. TRAILER 18. NO DAMAGE 16. OVERTURNED 19. OTHER

Reference Marker _____ Coordinates (if available) _____

Latitude/Northing: _____

Longitude/Easting: _____

Place Where Accident Occurred: ☐ BRONX ☒ KINGS ☐ NEW YORK ☐ QUEENS ☐ RICHMOND

Road on which accident occurred **E/B HERKIMER STREET**

at 1) intersecting street **ALBANY AVENUE**

or 2) _____ (Route Number or Street Name)

Cost of repairs to any one vehicle will be more than \$1,000. ☐ Unknown/Unable to Determine ☐ Yes ☐ No

Accident Description/Officer's Notes: AT T/P/O OPERATOR OF VEH #1 WAS TRAVELING STRAIGHT AT A HIGH RATE OF SPEED DISOBEYING STOP SIGN AT INTERSECTION AND RAN RIGHT INTO THE PATH OF ONCOMING BUS(VEH#2) WHICH HAD THE RIGHT OF WAY. AT WHICH POINT THE FRONT OF VEH #2 COLLIDED WITH THE SIDE OF VEH#2 CAUSING SPI TO DRIVER OF VEH#1 AND MULTIPLE INJURIES TO OPERATOR OF VEH#2 AND PASSENGERS

Names of all involved _____ Date of Death Only _____

Officer's Rank and Signature: **PO**

Print Name in Full: **AMATO**

Tax ID No. **037077** NCIC No. **03030** Precinct **HWV 3**

Post/Sector _____ Reviewing Officer _____ Date/Time Reviewed _____

Use COVER SHEET

Officer's Rank and Signature: **PO**

Print Name in Full: **AMATO**

Tax ID No. **037077** NCIC No. **03030** Precinct **HWV 3**

Post/Sector _____ Reviewing Officer _____ Date/Time Reviewed _____

Use COVER SHEET

Officer's Rank and Signature: **PO**

Print Name in Full: **AMATO**

Tax ID No. **037077** NCIC No. **03030** Precinct **HWV 3**

PERSONS KILLED OR INJURED IN ACCIDENT (Letter designation of persons killed or injured must correspond with letter designation on front)

A Last Name CHATMAN		First NAZJE	M. I.	D Last Name RICHARDSON		First DERRICK	M. I.
Address 1484 EASTERN PKWY BROOKLYN NY				Address 2177 STRAUSS ST BKLYN NY 11212			
Date of Birth Oct Month 6 Day 01 Year		Telephone (Area Code) ()		Date of Birth Feb Month 27 Day 64 Year		Telephone (Area Code) (718) 8010125	
B Last Name SLATER		First IOVAN	M. I.	E Last Name CARSON		First JUWANA	M. I.
Address 509 SARATOGA ST BKLYN NY				Address 152 TAPSCOTT ST BKLYN NY			
Date of Birth Apr Month 30 Day 77 Year		Telephone (Area Code) (348) 8038519		Date of Birth Nov Month 5 Day 97 Year		Telephone (Area Code) ()	
C Last Name CHATMAN		First JANIYAH	M. I.	Highway Dist. at Scene? ☒ Yes ☐ No			
Address 1484 EASTERN PKWY BROOKLYN NY				Name: PO AMATO			
Date of Birth Feb Month 17 Day 00 Year		Telephone (Area Code) (347) 5421278		Shield No. 11856			

ENTER INSURANCE POLICY NUMBER FROM INSURANCE IDENTIFICATION CARD, EXPIRATION DATE (IN ALL CASES), AND VIN.

Vehicle No. 1 _____ Vehicle No. 2 _____

Expiration Date _____ Expiration Date _____

VIN _____ VIN _____

WITNESS (Attach separate sheet, if necessary)

Name _____ Address _____ Phone _____

DUPLICATE COPY REQUIRED FOR:

- | | | | |
|---|--|---|---|
| ☐ Dept. of Motor Vehicles
(if anyone is killed/injured) | ☐ Motor Transport Division
(RD. vehicle involved) | ☐ NYC Taxi & Limousine Comm.
(if a Licensed taxi or limousine involved) | ☐ Other City Agency
(Specify) _____ |
| ☐ Office of Comptroller
(if a City vehicle involved) | ☐ Personnel Safety Unit
(if a P.D. vehicle involved) | ☐ Highway Unit _____ | |

NOTIFICATIONS: (Enter name, address, and relationship of friend or relative notified. If aided person is unidentified, list Missing Person Squad member who was notified. In either case, give date and time of notification.)

PROPERTY DAMAGED (other than vehicles)	OWNER OF PROPERTY (include city agency, where applicable)

IF NYPD VEHICLE IS INVOLVED:

Police Vehicle-Operator's First Name		Last Name		Rank	Shield No.	Tax ID. No.	Command
Make of Vehicle	Year	Type of Vehicle	Plate No.	Dept. Vehicle No.		Assigned To What Command	
Equipment in Use At Time of Accident							
☐ Siren ☐ Horn ☐ Turret Light ☐ 4-Way Flasher ☐ High-Level Warning Lights ☐ Traffic Cones ☐ Headlights							

ACTIONS OF POLICE VEHICLE

- | | |
|--|---|
| ☐ Responding to Code Signal _____ | ☐ Complying with Station House Directive |
| ☐ Pursuing Violator | ☐ Routine Patrol |
| ☐ Other (Describe) _____ | |

New York State Department of Motor Vehicles
POLICE ACCIDENT REPORT (NYC)

MV-104AN (7/11)

Precinct	81
Accident No.	755

Complaint Number 5628

☐ AMENDED REPORT

Accident Date Month Day Year Sep 9 2013		Day of Week Monday	Military Time 1638	No. of Vehicles 2	No. Injured 43	No. Killed 0	Not Investigated at Scene ☐	Left Scene ☐	Police Photos ☒ Yes ☐ No		
VEHICLE 1				☒ VEHICLE 2 ☐ BICYCLIST ☐ PEDESTRIAN ☐ OTHER PEDESTRIAN							
VEHICLE 1 - Driver License ID Number				State of Lic.		VEHICLE 2 - Driver License ID Number				State of Lic.	
Driver Name - exactly as printed on license				Apt. No.		Driver Name - exactly as printed on license				Apt. No.	
Address (include Number & Street)				City or Town		State		Zip Code		City or Town	
Date of Birth Month Day Year				Sex		Unlicensed ☐		No. of Occupants 2		Public Property Damaged ☐	
Name - exactly as printed on registration				Date of Birth Month Day Year		Sex		Unlicensed ☐		No. of Occupants	
Address (include Number & Street)				Apt. No.		Haz. Mat. Code ☐		Released ☐		Address (include Number & Street)	
City or Town				State		Zip Code		City or Town		State	
Plate Number				State of Reg.		Vehicle Year & Make		Vehicle Type		Ins. Code	
Ticket/Arrest Number(s)				Violation Section(s)		Ticket/Arrest Number(s)		Violation Section(s)			
Check if involved vehicle is: ☐ more than 95 inches wide; ☐ more than 34 feet long; ☐ operated with an overweight permit; ☐ operated with an overdimension permit.				Check if involved vehicle is: ☐ more than 95 inches wide; ☐ more than 34 feet long; ☐ operated with an overweight permit; ☐ operated with an overdimension permit.				Circle the diagram below that describes the accident, or draw your own diagram in space #9. Number the vehicles.			
VEHICLE 1 DAMAGE CODES Box 1 - Point of Impact Box 2 - Most Damage Enter up to three more Damage Codes				VEHICLE 2 DAMAGE CODES Box 1 - Point of Impact Box 2 - Most Damage Enter up to three more Damage Codes				ACCIDENT DIAGRAM Rear End Left Turn Right Angle Right Turn Head On Overtaking Left Turn Right Turn Sideswipe			
Vehicle By Towed To				Vehicle By Towed To				Cost of repairs to any one vehicle will be more than \$1,000. ☐ Unknown/Unable to Determine ☐ Yes ☐ No			
VEHICLE DAMAGE CODING: 1-13 SEE DIAGRAM ON RIGHT. 14. UNDERCARRIAGE 17. DEMOLISHED 15. TRAILER 18. NO DAMAGE 16. OVERTURNED 19. OTHER				Place Where Accident Occurred: ☐ BRONX ☒ KINGS ☐ NEW YORK ☐ QUEENS ☐ RICHMOND Road on which accident occurred at 1) intersecting street or 2) _____ Feet Miles				E/B HERKIMER STREET (Route Number or Street Name) ALBANY AVENUE (Route Number or Street Name) (Milepost, Nearest Intersecting Route Number or Street Name)			
Accident Description/Officer's Notes AT T/P/O OPERATOR OF VEH #1 WAS TRAVELING STRAIGHT AT A HIGH RATE OF SPEED DISOBEYING STOP SIGN AT INTERSECTION AND RAN RIGHT INTO THE PATH OF ONCOMING BUS(VEH#2) WHICH HAD THE RIGHT OF WAY. AT WHICH POINT THE FRONT OF VEH #2 COLLIDED WITH THE SIDE OF VEH#2 CAUSING SPI TO DRIVER OF VEH#1 AND MULTIPLE INJURIES TO OPERATOR OF VEH#2 AND PASSENGERS											

Reference Marker												Coordinates (if available)												Place Where Accident Occurred: ☐ BRONX ☒ KINGS ☐ NEW YORK ☐ QUEENS ☐ RICHMOND											
Latitude/Northing:												Road on which accident occurred												E/B HERKIMER STREET											
Longitude/Easting:												at 1) intersecting street												ALBANY AVENUE											
or 2) _____												Feet Miles												(Milepost, Nearest Intersecting Route Number or Street Name)											
Accident Description/Officer's Notes AT T/P/O OPERATOR OF VEH #1 WAS TRAVELING STRAIGHT AT A HIGH RATE OF SPEED DISOBEYING STOP SIGN AT INTERSECTION AND RAN RIGHT INTO THE PATH OF ONCOMING BUS(VEH#2) WHICH HAD THE RIGHT OF WAY. AT WHICH POINT THE FRONT OF VEH #2 COLLIDED WITH THE SIDE OF VEH#2 CAUSING SPI TO DRIVER OF VEH#1 AND MULTIPLE INJURIES TO OPERATOR OF VEH#2 AND PASSENGERS																																			
USE COVER SHEET																																			
P																																			
BY TO 18 Names of all involved Date of Death Only																																			
A																																			
B																																			
C																																			
D																																			
E																																			
F																																			
Officer's Rank and Signature												Tax ID No. NCIC No. Precinct Post/Sector Reviewing Officer Date/Time, reviewed																							
Print Name AMATO												03030																							

PERSONS KILLED OR INJURED IN ACCIDENT (Letter designation of persons killed or injured must correspond with letter designation on front).

A Last Name TURNER		First JAILEEN	M. I.	D Last Name		First	M. I.
Address X				Address			
Date of Birth Month Day Year		Telephone (Area Code) ()		Date of Birth Month Day Year		Telephone (Area Code) ()	
B Last Name GEORGE		First MARTHA	M. I.	E Last Name		First	M. I.
Address 23 ROOSEVELT PLACE BKLYN NY				Address			
Date of Birth Jul Month 20 Day 75 Year		Telephone (Area Code) (347) 2905004		Date of Birth Month Day Year		Telephone (Area Code) ()	
C Last Name TREWICK		First GENEVA	M. I.	Highway Dist. at Scene? ☒ Yes ☐ No			
Address 709SREKMAN ST BKLYN NY				Name:			
Date of Birth Dec Month 16 Day 53 Year		Telephone (Area Code) (718) 9221558		PO AMATO		Shield No. 11856	

ENTER INSURANCE POLICY NUMBER FROM INSURANCE IDENTIFICATION CARD, EXPIRATION DATE (IN ALL CASES), AND VIN.

Vehicle No. 1	Vehicle No. 2
Expiration Date	Expiration Date
VIN	VIN

WITNESS (Attach separate sheet, if necessary)

Name	Address	Phone
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DUPLICATE COPY REQUIRED FOR:

☐ Dept. of Motor Vehicles (if anyone is killed/injured)	☐ Motor Transport Division (RD. vehicle involved)	☐ NYC Taxi & Limousine Comm. (if a Licensed taxi or limousine involved)	☐ Other City Agency (Specify)
☐ Office of Comptroller (if a City vehicle involved)	☐ Personnel Safety Unit (if a P.D. vehicle involved)	☐ Highway Unit	

NOTIFICATIONS: (Enter name, address, and relationship of friend or relative notified. If aided person is unidentified, list Missing Person Squad member who was notified. In either case, give date and time of notification.)

PROPERTY DAMAGED (other than vehicles)	OWNER OF PROPERTY (include city agency, where applicable)

IF NYPD VEHICLE IS INVOLVED:

Police Vehicle-Operator's First Name		Last Name		Rank	Shield No.	Tax ID. No.	Command
Make of Vehicle	Year	Type of Vehicle	Plate No.	Dept. Vehicle No.	Assigned To What Command		
Equipment in Use At Time of Accident							
☐ Siren ☐ Horn ☐ Turret Light ☐ 4-Way Flasher ☐ High-Level Warning Lights ☐ Traffic Cones ☐ Headlights							

ACTIONS OF POLICE VEHICLE

☐ Responding to Code Signal	☐ Complying with Station House Directive
☐ Pursuing Violator	☐ Routine Patrol
☐ Other (Describe)	

NOTICE OF CLAIM

In the Matter of the Claim of

JULIUS WALLACE

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT
P.O. AMATO, "JOHN DOE", A NEW YORK CITY POLICE OFFICER WHOSE NAME
AND IDENTITY IS PRESENTLY UNKNOWN
NEW YORK CITY TRANSIT AUTHORITY
and SHAWN H. STRAKER

THE YANKOWITZ LAW FIRM, P.C.

Attorneys for CLAIMANT

175 East Shore Road
Great Neck, New York 11023
(516) 622-6200

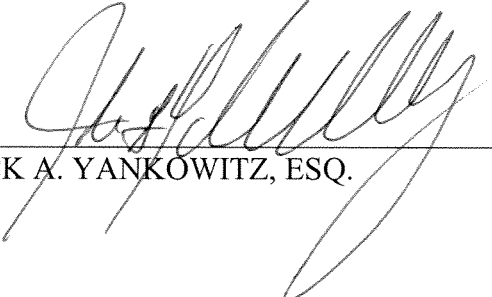
TO:

ATTORNEY'S VERIFICATION

JACK A. YANKOWITZ, ESQ., an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury: I am an attorney at THE YANKOWITZ LAW FIRM, P.C., attorneys of record for Plaintiff, **JULIUS WALLACE**. I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff is not presently in the county wherein I maintain my offices.

Dated: Great Neck, New York
September 4, 2014



JACK A. YANKOWITZ, ESQ.

Index No.
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

JULIUS WALLACE,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT P.O. AMATO, "JOHN DOES", NEW YORK CITY POLICE OFFICERS WHOSE IDENTITIES ARE PRESENTLY UNKNOWN, NEW YORK CITY TRANSIT AUTHORITY, SHAWN H. STRAKER, HERTZ VEHICLES LLC., CHRISTOPHER LANGLEY, DAVID L. KELLMAN and GEORGE S. JONES a/k/a DAVID L. KELLMAN,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

THE YANKOWITZ LAW FIRM, P.C.

Attorneys for Plaintiff

175 East Shore Road

Great Neck, New York 11023

(516) 622-6200

TO: THE CITY OF NEW YORK

100 Church Street

New York, New York

NEW YORK CITY POLICE DEPARTMENT

P.O. AMATO AND "JOHN DOES"

1 Police Plaza

New York, New York 10013

NEW YORK CITY TRANSIT AUTHORITY

130 Livingston Street

Brooklyn, New York 11201

SHAWN H. STRAKER

236 Hancock Street, Apt. No.5
Brooklyn, New York 11216

HERTZ VEHICLES, LLC

44074 Mercure Circle
Sterling, VA 20166-2014

and/ or

111 Eighth Avenue
New York, New York 10011

GEORGE S. JONES aka DAVID L. KELLMAN

526 Herzl Street
Brooklyn, New York 11212

DAVID L. KELLMAN

1311 Prospect Place
Brooklyn, New York 11213

CHRISTOPHER LANGLEY

221 Park Place
Brooklyn, New York 11238